

THE QUARTERLY OF THE OREGON HISTORICAL SOCIETY.

VOLUME I]

JUNE, 1900

[NUMBER 2



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THE OREGON HISTORICAL SOCIETY

ORGANIZED DECEMBER 17, 1898

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**THE QUARTERLY
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THE OREGON QUESTION.

I.

Ascending the Columbia River to the junction of its two main branches, and each of these branches in turn to its source, a point is reached to the north well toward the fifty-fifth degree of latitude, and another point to the south not far from the forty-first degree. Lines drawn through these two points directly west to the Pacific Ocean would divide the Pacific Coast of North America approximately into three great historic divisions. Previous to the year 1792, the coast north of the fifty-fifth degree had been explored and in some sort settled by Russia, and the sovereignty of Russia over it recognized; the part south of the forty-first degree had been explored and settled by Spain, and the sovereignty of it had been conceded to Spain; the middle part of the coast having been explored by both Spain and Britain, but settled by neither, the sovereignty of this was yet in abeyance. If the lines supposed to be drawn from the utmost north and south sources of the Columbia to the Pacific now be extended eastward to the crest of the Rocky Mountains, the territory included between these two lines, the Pacific Ocean and the crest-line of the Rocky Mountains, will embrace the states of Oregon, Washington, Idaho, with a considerable part of the states of California, Wyoming, and Montana, together with the greater part of British Columbia. It is the settlement of the question of sovereignty over the region thus roughly defined that is the subject of this paper.

During almost the whole period when its sovereignty was in question this region was commonly known in this country and in Europe as Oregon, the Oregon Country, or the Oregon Territory, and the question of its sovereignty as the Oregon Question. The country took its name from a legendary name of the river that defines it, a name given the river even before it had been seen by any white man. For many years previous to 1792 the existence of such a river in this region had been conjectured by explorers along the coast from signs they had observed in an indentation in the coast line, and by explorers in the interior from reports of such a river that reached them through native tribes supposed to dwell near its sources.

It is to Jonathan Carver, a native of Connecticut, that we owe, as it is still thought, the name Oregon. In his journal of travels in the regions of the Upper Mississippi he speaks of four great rivers, flowing in as many directions, which took their rise, as he had heard from native tribes, somewhere in the mountains to the west. One of these was, as Carver writes in his journal, "the river Oregon, or the River of the West, which falls into the Pacific Ocean." Already, in Carver's day, and before the time of his travels, maps had appeared with a river marked in the region of what is now the Columbia, which bore the name, among others, of the River of the West, or the Great River of the West. Whether Carver thought of this river as the river of his tradition cannot now be known, but it is certain that the name which he heard or invented came before long to be attached to this river for a time at least, and for all time to the region defined by the river.

At the beginning of the year 1792, the United States had no claim to the region of the Oregon, but by an event of this year they were destined to become one of the chief parties to the question of its sovereignty. This year Capt. Robert Gray, of Boston, was for the second time on the coast, trading and exploring, under sanction of congress. At some time during his previous voyage, or in the earlier part of his second voyage, while sailing close in shore, Gray had discovered in a bay or indentation of the coast in latitude $46^{\circ} 10'$ what seemed to him to be the mouth of a large river. Under this impression, he had remained in the neighborhood nine days, making repeated attempts to cross the bar and effect an entrance. But every attempt had been without avail, on account of the violence of the breakers which reached across the opening; he had been obliged to relinquish the attempt and sail away, unable at this time to verify his discovery.

Captain Gray had spent the winter of 1791–92 in Clioquot Sound, on the west coast of Vancouver Island, with his ship Columbia. Resuming his voyage in the spring, and sailing southward, on the morning of April 28, in latitude $47^{\circ} 37'$, he fell in with Captain Vancouver, at anchor off Destruction Island. In answer to Vancouver's inquiries as to what discoveries he had made, Gray reported to him his discovery in latitude $46^{\circ} 10'$ of what he took to be the mouth of a large river. This Vancouver recognized as the Deception Bay of Captain Meares, which he had himself passed and examined on the morning of Friday, April 27, scarcely twenty-four hours before. Of his observations in this bay Vancouver had at this time

made this record: "The sea now changed from its natural to river-colored water; the probable consequence of some streams falling into the bay, or into the ocean to the north of it through the low land. Not considering this opening worthy of more attention, I continued our pursuits to the northwest, being desirous to embrace the advantages of the now favorable breeze and pleasant weather, so favorable to our examination of the coast." Vancouver's estimate as here given of the importance of this opening is confirmed by an entry in his journal Monday, April 30, two days after meeting with Gray. After parting from Vancouver, who continued his course to the north, Gray sailed on along shore southward, stopping here and there to examine the coast or trade with the natives, but evidently keeping in mind the bay which he had taken to be the mouth of a river. In the log-book of the Columbia, for May 11, there is this entry: "At 4 A. M., saw the entrance of our desired port bearing east-south-east, distance six leagues; in steering sails, and hauled our wind in shore. At 8 A. M., being a little to windward of the entrance to the harbor, bore away, and run in east-north-east, between the breakers. * *

* When we were over the bar we found this to be a large river of fresh water, up which we steered."

Captain Gray remained in this river for nine days, during which time he explored it to a distance of thirty miles from the mouth. After filling the ship's casks with fresh water from the river, on May 20 he sailed out over the bar, having first given to the river his ship's name, the Columbia, which name the river has since borne.

From the mouth of the Columbia Gray sailed northward, and a few days later, having suffered some injury to his ship, put into Nootka Bay for repairs. Here he found Quadra, the Spanish commandant, to whom he communicated his discovery, and gave a chart of the mouth of the river. This title of Gray to be regarded as the discoverer of the Columbia River was then, by this immediate publication of the discovery, made secure, and it has never been successfully questioned. The existence of such a river had long before been conjectured; others, before Gray, sailing along the coast had remarked the same indentation, had noted its latitude, and observed signs of fresh water issuing from it; but it remained for Gray to surmount the obstacles to entrance and actually to sail in and cast anchor in the river.

It was this discovery of the Columbia River by Robert Gray, a citizen of the United States, sailing under the American flag, and with the sanction

of congress, that first gave the United States a claim to the Oregon region. It was not, however, to be the only ground of that claim. Some years before the discovery of the Columbia by Gray, an exploration of the Oregon region had been projected by Americans. The project seems to have originated with Jefferson, and may be regarded as a fitting prelude to the later achievement by his administration of the Louisiana Purchase. In the year 1786, six years before Gray's discovery, while Minister to France, Jefferson became acquainted with John Ledyard, of Connecticut, who had been with Captain Cook in his last voyage in the Pacific, and who as corporal of marines had gained some reputation for enterprise and daring. Ledyard had come to Paris in search of an opportunity to engage in the fur trade of the Pacific, and, failing in this, was ready to enlist in almost any other enterprise of daring. Jefferson suggested to him the exploration of the northwest region of America. The plan was, as Jefferson himself gives it, that Ledyard "go by land to Kamchatka, cross in Russian vessels to Nootka Sound, fall down into the latitude of the Missouri, and penetrate to and through that to the United States." Jefferson's proposal was accepted by Ledyard, and steps were at once taken to secure from the Empress of Russia permission for him to cross her dominions. Failing to secure permission of the Empress, she being absent from her capital in a distant part of her dominions, Ledyard, impatient of longer delay, set out on his own responsibility, and got to within two hundred miles of Kamchatka, when he was arrested by an order of the Empress and taken back to Poland, where he was released. "Thus failed," writes Jefferson, "the first attempt to explore the western part of our Northern Continent."

The attempt failed, but Jefferson's interest in the exploration of this region did not die with it. Of a second attempt some years later he writes: "In 1792, I proposed to the American Philosophical Society that we should set on foot a subscription to engage some competent person to explore that region in an opposite direction—that is, by ascending the Missouri, crossing the Stony Mountains, and descending the nearest river to the Pacific." This plan too was attempted, but the seriousness of the projector's purpose was severely tried by the delay of years in raising the necessary funds. When at last, under the leadership of Captain Meriwether Lewis, later of the Lewis and Clark expedition, the explorers were well started on the way, the expedition failed through an order of the French minister recalling the botanist of the expedition, who was a citizen of France. "Thus failed,"

writes Jefferson again, "the second attempt to explore the Northern Pacific region."

Jefferson's interest in the exploration of the Northwest did not die with the failure of this second attempt. Delay in raising the necessary funds for the expedition had brought the setting out of the explorers down to the eve of an event that placed Jefferson in a position to further such an enterprise to a successful issue, and of another event which was to furnish a new motive to its undertaking. Early in the year 1801, when Jefferson had but just taken his seat as President, Rufus King, Minister of the United States to England, wrote to Madison, Secretary of State, that the opinion at that time prevailed both at Paris and at London that Spain had ceded Louisiana and the Floridas to France. Immediately on receipt of this information Madison wrote to Pinckney, American Minister to Spain, advising him of the rumor, and of the President's urgent wish that he make the whole subject the object of early and vigilant inquiries. Instructions to the same effect were given later to Robert R. Livingston on his departure as Minister to France. After more than a year of persistent inquiry on the part of both ministers it was ascertained that Louisiana had been transferred to France, and that the transfer probably included the Floridas. Uncertainty on the latter point, as we now know, arose from the uncertainty of the governments of France and Spain as to the limits of Louisiana. Meanwhile the government at Washington pressed its ministers at both courts to use every effort to secure to the United States the Floridas and New Orleans, with the Mississippi as our western boundary, and the free navigation of the river to its mouth. Events of the latter part of the year 1802, and especially the Spanish intendant's order excluding the United States from New Orleans as a place of deposit, together with France's open preparations for the occupation and colonization of New Orleans and Lower Louisiana, made the President yet more urgent in pressing for this end. So far, Jefferson's thought seems not to have gone beyond the limits of Madison's dispatch to Pinckney of May 11 of that year, "that every effort and address be employed to obtain the arrangement by which the territory on the east side of the Mississippi, including New Orleans, may be ceded to the United States, and the Mississippi be made a common boundary." The sentiment of the Atlantic States was at this time strongly averse to the extension of our territory west of the Mississippi River, and there is nothing in the government's dispatches up to the close of the year 1802 to indicate that Jefferson did not share in

this sentiment. But there is that in Jefferson's action shortly after this that shows him to have been singularly open-minded to the suggestion of events, and to have been prompt to prepare to avail himself of whatever the rapid movement of events might offer of advantage to his government.

In October of this year, 1802, in a conversation with Livingston concerning Louisiana and the Floridas, Joseph Bonaparte put the question to Livingston pointedly whether the United States preferred the Floridas to Louisiana. Coming from this source, the question was felt by Livingston to have significance. Though he shrank from the thought of such an extension of our territory as the purchase of Louisiana would involve, he promptly communicated the substance of the conversation to the government at home, in a letter addressed to the President in person. This letter dated Paris, October 28, was due in Washington about the first of January. On the eleventh of January Jefferson sent a message to the Senate nominating "Robert R. Livingston to be Minister Plenipotentiary, and James Monroe to be Minister Extraordinary and Plenipotentiary, with full powers to both jointly, or to either on the death of the other, to enter into a treaty or convention with the First Consul of France for the purpose of enlarging and more effectually securing our rights and interests in the River Mississippi and the territories eastward thereof." Since the possession of these territories was understood to be still in Spain, Pinckney and Monroe were nominated with like powers to enter into a treaty with Spain to the same end. The words with which Jefferson prefaced this nomination of Monroe as Minister Extraordinary are worthy of note in this connection, and in view of what presently emerged in the negotiations in Paris. "While my confidence," writes Jefferson, "in our Minister Plenipotentiary at Paris is entire and undiminished, I still think that these objects might be promoted by joining with him a person sent from hence directly carrying with him the feelings and sentiments of the nation excited on the late occurrence, impressed by full communications of all the views we entertain on this interesting subject, and thus prepared to meet and to improve to an useful result the counter propositions of the other contracting party, whatsoever form their interests may give to them, and to secure to us the ultimate accomplishment of our object."

Whether Jefferson had in mind when he wrote these words any such "counter proposition" as was afterward actually made, we do not certainly

know, but if he had had such in mind he could hardly have better provided for its prompt improvement to a useful result. Meanwhile events in Europe were shaping the suggestion of Joseph Bonaparte into a formal proposition from the First Consul. The renewal of hostilities between France and England was now imminent. In the event of war it was manifest to Napoleon that he would be unable to hold Louisiana against the sea power of England. Rather than that this valuable possession should fall into the hands of his enemy he resolved to sell it, if possible, to the United States, and thus win back the nation which his policy of colonization had well-nigh alienated, and at the same time recruit his depleted treasury. Negotiations to this end were already begun when Monroe arrived in Paris, and were continued after his arrival with scarcely a halt to their successful and memorable issue.

A third scheme of Jefferson's for the exploration of the northwestern region of the continent was coincident with these latter steps that led to the purchase of Louisiana. The message nominating Monroe as Minister Extraordinary was sent to the senate, January 11, 1803. January 18, Jefferson, taking occasion of the expiration of the term of an act establishing trading houses with the Indian tribes, writes to the senate on the subject of its renewal. In the course of the message, having touched upon the fact that the maintenance of such trading houses by the government deprived certain of our citizens of a lucrative trade, he suggests for the senate's consideration whether the government might not rightly do something to encourage such persons to extend their trade in the regions beyond the Mississippi, then proceeds to outline a plan for the exploration of a trade-route up the waters of the Missouri and through to the Western Ocean. "The interests of commerce," he urges, "place the principal object within the constitutional powers and care of congress, and that it should incidentally advance the geographical knowledge of our own continent cannot but be an additional gratification. The nation claiming the territory, regarding this as a literary pursuit, which it is in the habit of permitting within its dominions, would not be disposed to view it with jealousy, even if the expiring state of its interests there did not render it a matter of indifference. The appropriation of \$2,500 'for the purpose of extending the external commerce of the United States,' while understood and considered by the executive as giving the legislative sanction, would cover the

undertaking from notice and prevent the obstructions which interested individuals might otherwise previously prepare in its way."

Thus skillfully did Jefferson in a confidential message, as a matter incidental to the main purpose of the message, put before the senate a well reasoned scheme for the exploration of the territory for the purchase of which ministers already appointed were soon to negotiate. One can hardly read this message and weigh its carefully worded terms in the light of what was already in the knowledge of the President, without its awakening more than a suspicion that the possibility of the purchase of Louisiana by the United States was distinctly present to Jefferson's mind as he wrote, if it did not indeed lend urgency to his argument. It is worthy of note, at any rate, that the measures for the carrying out of this proposed scheme of exploration of the territory kept pace with the progress of the negotiations for its purchase, and quite outran the business of its transfer; for while the transfer of Louisiana was not consummated until December of that year, the commander of the expedition had been selected and commissioned, and the expedition organized as early as midsummer. Thus closely joined in time, if not otherwise intimately connected, were these two measures of Jefferson's earlier administration, the Louisiana purchase and the Lewis and Clark exploration. The promptness, energy, and efficiency with which the exploration was carried out under the able and courageous leadership of the man placed in charge, were altogether worthy of its distinguished projector. The two stand together, the purchase and the exploration, as worthy counterparts in what must forever be regarded as one of the most daring yet at the same time farsighted projects of statesmanship in American history.

These two measures have been dwelt upon thus at length because of their material importance to the ultimate settlement of the Oregon Question. The purchase of Louisiana brought the territory of the United States at the crest of the Rocky Mountains in contiguity with the Oregon region through seven degrees of latitude, while the Lewis and Clark expedition explored a continuous route from the Mississippi River to the Pacific Ocean, through the very center and by the central artery of the region in question. These two events together made the second ground of our claim to the region of the Oregon. Furthermore, they made possible for the first time that movement of population across our border into this adjacent and unoccupied territory which by the law of nations was essential to the

validity of our title,—that immigration of American families upon which, in spite of every earlier attempt at settlement, the final settlement of the question of sovereignty was destined to wait.

Louisiana had been purchased by the United States from France, or, rather, from the First Consul, who at the time embodied in himself the government of France. Spain, however, though by a convention three years before the sale having agreed to retrocede the territory to France, had remained in possession almost to the day of its transfer to our government, so that possession of the territory virtually passed to the United States immediately from Spain. The transfer left Spain still with possessions within the present boundaries of the United States of vast extent and of immense value. East of the Mississippi were the Floridas, and west of that river was a great region extending from the ill-defined western boundary of Louisiana westward to the Pacific. These were conceded possessions of Spain. Besides, Spain was a claimant, on the grounds of discovery and exploration, of the Oregon country.

Spain had long claimed exclusive sovereignty over this region, with the right to forbid the encroachment of other nations, on the ground that it belonged to that region allotted to her by the bull of Pope Alexander VI. England had never recognized Spain's claim to exclusive sovereignty based upon papal authority, but had asserted her right to settle upon any lands included within the limits prescribed by the papal bull, even if discovered by Spain, if, after a reasonable time allowed for settlement had passed, such lands remained unoccupied. This attitude of England's appeared in her policy as early as the reign of Elizabeth; it appears in the Queen's reply to the Spanish ambassador on occasion of his remonstrance against the expedition of Drake, "that she did not understand why either her subjects, or those of any other European prince, should be debarred from traffic in the Indies; that as she did not acknowledge the Spaniards to have any title by donation of the Bishop of Rome, so she knew no right they had to any places other than those they were in actual possession of; for that their having touched only here and there upon a coast, and given names to a few rivers or capes, were such insignificant things as could in no way entitle them to a propriety further than in the parts where they actually settled, and continued to inhabit." This principle, thus early enunciated, of actual settlement as essential to ultimate validity of title, is important to note, not

only for its bearing against Spanish pretensions at this time, but because of its ultimate and decisive effect as against England herself in the settlement of the Oregon question. The same principle emerged again in 1770, in the affair of the Falkland Islands, and again still more distinctly ten years later in the Nootka Convention. The point at issue in each of these cases was that Britain claimed the right to make settlement upon a part of the American coast claimed by Spain but remaining unoccupied by her, while Spain denied this right and asserted her exclusive sovereignty over all such places. In order to give effect to this claim of exclusive sovereignty over the Northwest Coast of America, Spain had, within a few years previous to the Nootka Convention, given orders that the coasts of Spanish America should be more frequently navigated and explored, and, in view of the recent encroachment of navigators and traders of other nations in those parts, her "general orders and instructions were, not to permit any settlements to be made by other nations on the continent of Spanish America." It was in carrying out these orders that the Spanish Commandant Martinez, in the summer of 1789, finding two British vessels in Nootka Sound, attempting a settlement there, captured the vessels and broke up the settlement.

In the course of the negotiations that followed on this act of Spain's, the full extent of the Spanish claims appeared. As given by Count Nunyez, Spanish Ambassador at Paris, to M. de Montmorin, Secretary of the Foreign Department of France, June 1, 1790, it was claimed, "that, by treaties, demarkations, taking of possessions, and the most decided acts of sovereignty exercised by the Spaniards in those stations from the reign of Charles II, and authorized by that monarch in 1692, all the coast to the north of Western America, on the side of the South Sea, as far as beyond what is called Prince William's Sound, which is in the sixty-first degree, is acknowledged to belong exclusively to Spain." Not feeling sufficiently strong in herself to enforce this claim, and unable to secure the support of allies, Spain yielded this pretension so far as to make, July 24, 1790, a declaration to Great Britain in which the King of Spain engaged to make full restitution of all British vessels which were captured at Nootka, and to indemnify the parties interested in those vessels for the losses which they should be found to have sustained. "It being understood," the declaration concluded, "that this declaration is not to preclude or prejudice the ulterior discussion of any right which His Majesty may claim to form an exclusive establishment at the port of Nootka." The same day the British Minister at

Madrid presented a counter declaration accepting the declaration of the Spanish King as offering "full and entire satisfaction" for the injury complained of, in which counter declaration, however, it was added at the same time "that it is to be understood that neither the said declaration, nor the acceptance thereof in the name of the King, is to preclude or prejudice, in any respect, the rights which His Majesty may claim to any establishment which his subjects may have formed, or should be desirous of forming in the future, at the said Bay of Nootka." The exchange of this declaration and counter declaration in July was followed in October of the same year by the conclusion of the Nootka Convention between Spain and Great Britain. The third article of this convention is: "And in order to strengthen the bonds of friendship, and to preserve in future a perfect harmony and good understanding between the two contracting parties, it is agreed that their respective subjects shall not be disturbed or molested, either in navigating or carrying on their fisheries in the Pacific Ocean, or in the South Seas, or in landing on the coast of those seas, in places not already occupied, for the purpose of carrying on their commerce with the natives of the country, or of making settlements there; the whole subject, nevertheless, to the restrictions and provisions specified in the following articles."

After all the restrictions of the later articles of this treaty are taken into view Britain may be regarded as having maintained her main contention: That she had a right to any establishment which her subjects might have formed, or shall be desirous of forming in future, in any unoccupied places on the islands or the coasts of the Pacific Ocean. The restrictions still left this clear, at least in respect to the Oregon region. In so far as Britain succeeded in maintaining in this convention this claim to the right of settlement, in so far as Spain's claim to absolute sovereignty to this region practically modified and limited. Unless Spain speedily made good her reserved right of sovereignty by actual occupation of the region in question, she must consent henceforth to hold her right of settlement as limited by a similar right now conceded to Britain. It is at this point in history, at the Nootka Convention, that the Oregon Question takes definite form: Whose shall the territory be? Shall it be Spain's? or shall it be Britain's? or shall it be divided between the two?

The story has already been told of the entrance of the United States into the question as a third claimant, through Gray's discovery, the Louisiana

Purchase, and the Lewis and Clark expedition. The story of how the United States succeeded to the modified claim of Spain to the Oregon region belongs to the sequel of the Louisiana Purchase. The purchase of Louisiana left the United States with a group of intricate and delicate questions to settle with Spain, and with Spain in no mood for a speedy and amicable settlement. The transfer of Louisiana had not carried with it a clear definition of its boundaries. This was in part true of its boundary on the east, and especially true of its western boundary. Almost immediately on the transfer of the territory negotiations were begun with Spain on questions arising out of the transfer, or intimately connected with it. Two main objects of the negotiations on the part of the United States were, to secure from Spain, by purchase or otherwise, the cession of her remaining possessions east of the Mississippi, and the settlement of the boundary of Louisiana to the west. Any question in respect to the Oregon country seems not at first to have been present to the thought of either party. Negotiations were begun in 1804, and were continued, with intervals of interruption, until February 22, 1819, when, by a convention of that date, the Floridas were ceded by Spain to the United States, and a boundary line west of the Mississippi agreed upon. This western boundary line, after striking latitude 42° near the supposed source of the Arkansas River, was to run west on this parallel to the Pacific Ocean. Article III of this convention, after particularly describing this line, concludes: "The two high contracting parties agree to cede and renounce all their rights, claims, and pretensions to the territories described by said line: That is to say, the United States hereby cede to his Catholic Majesty, and renounce forever all their rights, claims, and pretensions to the territories lying west and south of the above described line; and, in like manner, his Catholic Majesty cedes to the United States all his rights, claims, and pretensions to any territories east and north of the said line; and for himself, his heirs, and successors renounces all claim to the said territories forever." Thus the Florida treaty, though making no mention of the Oregon Territory, incidentally carried with it the final delimitation of that territory on the south, and the transfer to the United States of the Spanish claim to Oregon. By this treaty the earliest claimant to the Oregon Territory ceased longer to be a party to the question of its sovereignty.

The question of sovereignty was not left to Great Britain and the United States alone, on the withdrawal of Spain. More than two decades before,

Russia had entered this region with an assertion of her right to make settlement on unoccupied territory, and recently had grown somewhat imperious in the tone of her assertion of that right. This intrusion of Russia followed close upon the Nootka Convention, and was the logical consequence of the principle for which Great Britain had secured recognition in that convention. It will be remembered that Great Britain did not base her right to make, and to have restored to her, the Nootka settlement so much on priority in discovery of the region in which the settlement was made, as on the broader principle of her right to settle in any place by whomsoever discovered, which after a reasonable time she might find unoccupied. This principle could not be valid for England alone, and Russia was not long in discovering its wider validity. After England's previous assertion of this principle, in the affair of the Falkland Islands, Spain had taken alarm, and had sent explorers along the Northwest Coast with the intention of making good her claim to it by the northward extension of her settlements. In like manner Russia now began to extend her claim into new territory by availing herself of this same principle. The grant of Emperor Paul I to the Russian American Company in 1799 gave the company exclusive possession from latitude 55° northward to the Arctic Sea, with the right to extend their settlements south of 55°, if they did not thereby encroach on territories occupied by other powers. In the spring of 1808 the Russian government opened a correspondence with the government of the United States in relation to what Russia was pleased to term the illicit traffic of American traders with the natives inhabiting Russian territories. It appeared in the course of this correspondence that Russia claimed the coast at this time as far south as the Columbia River. The right to make settlements, or at least to establish trading posts, it seems she did not confine to this southern limit, for in 1816, a Russian trading post was established as far south as latitude 38°, in Northern California.

In this later and more aggressive policy of extending her claims southward, Russia is thought to have been influenced by the publication in Paris in 1808 of Humboldt's Political Essay on New Spain, in which such a destiny for Russia had been hinted at. However this may have been, it is certain that the accounts of Humboldt's travels were eagerly read by the Russian Emperor, and an increased boldness and aggressiveness are observable in Russian policy after the publication of this work.

The extreme of Russia's pretensions in the matter of extension of territory was reached in 1810, when the subject of the encroachment of American traders was brought again to the attention of our government. Mr. Adams, American Minister at St. Petersburg, in reply to the Russian Minister, suggested that, since it did not appear how far the Russians stretched their claim southward along the coast, it was desirable that some latitude be fixed as the limit, and that it should be advanced as little southward as might be. The answer of Russia was, that the Russian-American Company claimed the whole coast of America on the Pacific, and the adjacent islands, from Bering's Strait southward toward and beyond the mouth of the Columbia River. With this declaration of Russia's claim negotiations were broken off, and were not resumed until September, 1821, when Emperor Alexander issued a ukase, in which he declared all the Northwest Coast of America north of latitude 51° exclusively Russian, and warned all other nations against intrusion within those limits. The extent of the territory claimed in this imperial ukase was less than that of the territory claimed by Russia in 1810, and in particular the extent of the claim was not so great southward. Several events had occurred since 1810 to limit the extent of Russia's claim, though scarcely to modify the imperiousness of her tone. To this intervening period belong the settlement at Astoria of the Pacific Fur Company in 1811, the exploration of the Upper Columbia the same year by David Thompson, an agent of the Northwest Company, with a view to the extension of the posts of his company far to the westward; the purchase two years later by the Northwest Company of the establishment of the Pacific Fur Company at Astoria, and its transfer a few days later to the British flag with the change of name to Fort George; the surrender of the fort in 1818 in accordance with the terms of the treaty of Ghent; the extension westward of the Hudson's Bay Company into this region, and its union in 1821 with its rival, the Northwest Company; and finally the extension over the settlements of the united companies, by an act of parliament in the same year, of the jurisdiction of the courts of Upper Canada.

These events had so changed the aspect of affairs on the Columbia at the time of the Russian Emperor's decree in 1821 as to leave him no alternative but to resort to the middle line, and drawing a line midway between the Anglo-American settlement at the mouth of the Columbia and

the southernmost Russian settlement to the north of that river, to stand for a southern boundary for his possessions at the fifty-first parallel.

This decree, though it withdrew the line of territory claimed thus far northward, was yet offensive in tone and arbitrary in many of the regulations it sought to enforce against the citizens of other nations. Besides, it still encroached upon territory claimed by both Britain and the United States. Both England and America protested, and opened, each in her own behalf, negotiations with Russia which resulted in establishing in 1824 the line of $54^{\circ} 40'$ as the boundary between the territories claimed by Russia and those claimed by America, and in the following year the same line, with modifications to the east, as the boundary between the claims of Russia and those of Britain. These two conventions may be regarded as the final acts in the delimitation of the Oregon Territory.

JOSEPH R. WILSON.

(To be continued.)

OUR PUBLIC LAND SYSTEM AND ITS RELATION To EDUCATION IN THE UNITED STATES.

Local historians seem inclined to overlook some of the most interesting subjects included under the general term of history. One of these is the origin of land titles. I do not propose in this article, limited as to space, to do more than indicate by slight touches the growth of land titles on the earth, and the steps by which we as a nation became endowed with the ownership of land in parcels large or small. Further, the object of this brief review is to fix in the mind of the student of history, and especially of Oregon history, the connection between land and educational privileges in his state.

By way of introduction I would put forth the proposition, by no means original, that God-made things are eternal, and belong to the children of men equally and forever. Such is man himself. There can be no human ownership of men except that of brotherhood. The dominion of man over all other life is for his use only. He cannot claim collective ownership of any particular genus or species, but only individual ownership by conquest. Of the great divisions of inanimate nature, earth, air, and water, individual man cannot own more than he uses, because they belong equally to all men, and to all living things. For the needs of these they were created, without preference for races or single representatives of races.

Men in their primordial condition blindly recognized this principle as to the earth, and for thousands of years did not become owners of land in severalty. Divided into tribes they contended with each other for the possession of certain countries because they were born there, or because it held the graves of their fathers. To "sleep with their fathers," or to continue to breathe the air which had borne abroad over the land the sacred ashes of their ancestors was with them a religion. The same earth furnished pasturage for the animals upon whose milk and flesh they subsisted, and nourished the fruits they found most agreeable. Hence they contended for

its use against the covetousness of other tribes. The long and persistent war carried on by the descendants of Abraham to regain the land which held his burial place is an example of the ancient sentiment of ownership in land, a sentiment which we honor most highly under the name of patriotism. Metes and bounds could not be closely observed in a pastoral country, neither could they in a wooded one where game furnished the chief subsistence of the inhabitants. Everything depended upon the strength and valor of the predatory and the resisting tribes, and the division of lands acquired in war was settled, as in this world most things still are settled, by the most active securing to themselves the most desirable places.

The common desire to save from invasion the country of their birth, and the necessity of captains in war, led to chieftainship, and chieftainship led to the accumulation of such wealth as the conquered lands afforded, whether in flocks and herds, in other subsistence, or in such personal property as the subjugated nation possessed. War makes a people nomadic in their habits. The young and the strong were trained to fight, the feebler remained in such homes as they were able to maintain in a state of continual dread of the enemy. The cultivation of the ground at this stage of civilization was as uncertain as it was unscientific. To the majority the land could have only a sentimental value; to the higher classes it was a source of income through the enforced labor of the enslaved class by whose toil they were enabled to pay their military taxes to petty Kings.

Continental Europe was at this stage of development centuries after the Christian era, and England long after the crusades. It was in the eleventh century that the Norman conqueror, William, having fixed himself upon the English throne, in order to secure the military tax in its entirety, caused the lands held by the feudal lords to be surveyed, and a description of them recorded in his Domesday Book. Hitherto lands were held under grants from barons or lords; but the Conqueror claimed that, as the representative of the people, he, and he only, could give a legal title to land, thus indirectly recognizing its ownership by the people. Under William, all land owners, great and small, were known as "the King's men," a policy which made the feudal lords his supporters. In return for their support he gave them offices. An office presupposed property, and property insured office. The first social effect of this was to lower men hitherto free, although in time it tended to raise the condition of the slave class to that of freemen by removing the

distinction between these two classes. But it left a peasantry attached to the soil with no voice in its disposal. A law of primogeniture prevented the division of the great estates conferred upon "the King's men," who could neither sell nor give away their landed property.

How much of the colonizing spirit of Englishmen is due to this exclusive occupation of England by a class, we might very naturally inquire. But that is aside from the subject under consideration. It was my intention to point out that the land system of the United States is directly descended from the practice of William the Conqueror, whose policy of binding the most active and influential men of the Kingdom to his throne by gifts of land was imitated by his successors down to the period when English subjects began to colonize America.^{[1](#)}

At the time when Englishmen made this important movement, Spain and France had already laid claim to extensive tracts of country lying upon the great rivers debouching into the Gulf of Mexico in a southern latitude, and into the Gulf of Saint Lawrence in a northern latitude, which ultimately became possessions of the United States, either by purchase or treaty, after our war of independence. Between these two indefinite boundaries the English colonies were located. Wherever the Englishman went he carried his loyalty to his King and his country's laws. His presence on the soil of Virginia made it English soil, conveying to it the sovereignty of England, and the King's right to confirm to him whatever he had already taken, provided both of them together could hold it against the native occupants.^{[2](#)} The grants from James and Charles I were described in terms more imaginative than accurate, the "South Sea," or Pacific Ocean, being the western limit of some of the earliest charters. But when the thirteen commonwealths on the Atlantic Coast asserted their right and ability to govern themselves, proving it by the arbitrament of the sword, and securing a treaty of peace with the mother country, such discoveries had been made, and so many remained to be made, that it was thought expedient to adopt the apparently natural boundaries of the United States, namely, the Saint Lawrence and Great Lakes on the north, the Mississippi on the west, the Spanish possessions in Florida on the south, and the Atlantic Ocean on the east.

In 1779, three years after the declaration of independence, and four years before the treaty of peace, the American Congress recommended to

the several states in the union to make liberal cessions of their respective claims for the common benefit of the union, including the state making the cession. Thus early did our government assert the principle that the lands not held by occupancy belonged to the people for their use. The people on their side were quite willing to assist the union, burdened as it was with the debt of the revolutionary war, and other claims. But the unsettled boundaries of the several states made it a matter of some difficulty to convey land to the government in definite measure, some of the older grants, like Massachusetts and Connecticut, extending "from sea to sea." Disputes had arisen between the colonies over their boundaries, as when the Dutch had established New Netherlands on the Hudson River, cutting in two the grant of Connecticut. It was not until 1733 that the boundary of New York (formerly New Netherlands), was settled, and Connecticut still claimed the lands west of New York. From Maine to Georgia there were boundaries to be settled.

New York was the first to respond to the suggestion of congress, in 1781, by ceding all her title to lands west of a line drawn north and south twenty miles west of Niagara River, without conditions. Virginia followed, and on March 1, 1784, conveyed her territory west of the Ohio River to the United States. Massachusetts, in 1785, also renounced her claim, unconditionally, to any lands west of the Hudson River. Connecticut, in 1786, ceded to the United States all the lands claimed by her west of a north and south line drawn one hundred and twenty-five miles west of the western boundary of Pennsylvania.

Virginia's first charter having been withdrawn, the second, dated in 1609, gave this colony all the territory for two hundred miles north and south of Point Comfort, on the Atlantic Coast, and westward to the "South Sea," or Pacific Ocean, with all islands lying within one hundred miles of either coast. The extension westward only to the Mississippi of the northern line of Virginia, by the Treaty of Peace, left nearly half of that state on the northwest side of the Ohio River. This territory Virginia, in 1783, offered to cede to the United States, upon condition that it should be divided into states of not less than one hundred nor more than one hundred and fifty miles square, "or as near thereto as circumstances will admit, and that the states so formed shall be distinct republican states, and admitted members of the federal union, having the same rights of sovereignty, freedom, and

independence as the other states."³ The expenses incurred by Virginia "in subduing British posts, or in maintaining forts and garrisons within or for the defense, or in acquiring any part of the territory so ceded or relinquished" should be fully reimbursed by the United States. The French and Canadian inhabitants, and other settlers who had professed themselves to be citizens of Virginia, were to have their possessions confirmed to them, and be protected in the enjoyment of their rights and liberties. A quantity of land, not exceeding one hundred and fifty thousand acres, was required to be granted "to General George Rogers Clarke and the officers and soldiers of his regiment, who marched with him when the post of Kaskaskia and Saint Vincent were reduced, and to the officers and soldiers that have been since incorporated into the said regiment," to be laid off in one tract in such shape as the officers should choose. Also, in case the land reserved by law on the southeast side of the Ohio River for the bounties of the Virginia troops should prove insufficient or of poor quality, then the deficiency should be made up from the lands on the northwest side of that river. All the land within the ceded territory, not reserved or appropriated to the purposes named, was to be a common fund for the use and benefit of such of the United States as had become, or should become, members of the confederation, "according to their respective proportions, in the general charge and expenditure."

In July, 1786, congress recommended to Virginia to revise her act of cession so far as to empower the United States to divide the territory northwest of the Ohio River into not more than five nor less than three states, as the situation of that country and the circumstances might require, which states were to become in the future members of the federal union.

In September of the same year, Connecticut ceded to the union the lands she still claimed west of the State of New York, known as the Western Reserve, extending one hundred and twenty miles west of the western boundary of Pennsylvania. In accepting the gift congress required a deed relinquishing the jurisdictional claim of Connecticut to the Western Reserve to be deposited with the deed of cession in the office of the Department of State of the United States; and provided that nothing contained in the deed of cession should involve the government in the dispute between Pennsylvania and Connecticut which had been settled in the federal court. Neither should anything contained in the deed pledge the United States to

extinguish the Indian title to the ceded lands. All of this being agreed to, the Western Reserve was added to the Northwest Territory. On the other hand the "military tract" was reserved, and even added to, but did not become United States donation lands. They were considered as Virginia's bounty to the men who had defended and preserved the country. The jurisdiction, however, was in the general government.

In 1787 South Carolina ceded unconditionally such land as she laid claim to between the mountain range by which her territory was traversed, and the Mississippi River. In 1790 North Carolina made her cession similarly, except that neither the lands nor the inhabitants west of the mountains should be "estimated" for the expenses of the Revolutionary War; that soldiers should receive the bounty lands promised them; that certain entries already made might be changed; that the ceded territory should be formed into a state or states, with all the privileges set forth in the ordinance of the late congress for the government of the Western Territory of the United States; *provided*, always, that no regulations made, or to be made, by congress should tend to emancipate slaves. The inhabitants of the ceded territory were to be liable to pay their proportion of the United States debt, and the arrears of the debt of North Carolina to the Union. The laws of this state should be in force in the territory until repealed or altered, and nonresident proprietors should not be taxed higher than residents.⁴

For various reasons Georgia was not ready to renounce any territory claimed by her before 1798, and the deed of cession was not made until 1802. Georgia, like North Carolina, desired to have the state formed from her territory enjoy the privileges granted to the Northwest Territory by the ordinance of 1787. Out of the lands relinquished to the general government by the states south of the Ohio, and the territory subsequently acquired by treaty and purchase from France and Spain, were formed, in the early part of the nineteenth century, the several territories afterwards admitted as states with the rights and privileges guaranteed in the compact between the United States and the people of the Northwest Territory.

Hitherto I have sketched the political history of the lands of the United States with the object only of pointing out the change that had occurred in men's ideas of natural rights in the soil. They had also progressed greatly in their understanding of political rights. The struggle of the American colonies to achieve independence had served as an object lesson of

immense importance even to the colonies themselves, and they were prepared to guard their new-found freedom with a jealous care. Next to the Declaration of Independence in justice and dignity stands the compact entered into between the people and congress in giving and accepting the territory first ceded by the original states to the United States, and known as the Ordinance of Seventeen Eighty-Seven. By this ordinance the people of the Northwest Territory were assured that no person demeaning himself in a peaceable and orderly manner, should ever be molested on account of his mode of worship, or religious sentiments. The people should always be entitled to the benefits of the writ of *habeas corpus*, and trial by jury; of proportionate representation in the legislature, and of judicial proceedings according to the course of common law. All persons should be bailable, except for capital offenses, the proof of which was evident, or the presumption great. All fines should be moderate, and no cruel or unusual punishments inflicted. No man should be deprived of his liberty but by the judgment of his peers, or the law of the land. No man's property should be taken for the public service without full compensation. Religion, morality and knowledge, being necessary to good government, and the public happiness, schools and the means of education should be forever encouraged. The utmost good faith should always be observed towards the Indians. Their lands and property should never be taken away from them without their consent, nor their rights and liberty invaded except in lawful war, but laws for their protection should be enacted. There should be neither slavery nor involuntary servitude in the territory, otherwise than for the punishment of crimes whereof the person should have been duly convicted.⁵

Comparing this noble framework of the new state with the laws and the restrictions imposed upon the colonies from their beginning, our admiration cannot be withheld. But it is to its effect in furnishing the means of education to the whole people that attention is here directed. Schools and education were "forever to be encouraged." It is true that under the colonial system a few colleges had been established. Six years after the settlement of Massachusetts, Harvard College was founded. Virginia and Connecticut were equally in haste to provide educational advantages for their young men; but it was only the sons of clergymen and the best families who in those early days found admittance. Humble people had to be content if they

could read, write, and cipher; and rules of grammar, with the sciences, were beyond their ambition.

In 1785, two years only after our independence was secured, and six years after the congress of the states had suggested to the several commonwealths the propriety of contracting their boundaries in order to enable the United States to clear themselves of debt, and to be possessed of a public domain, when only New York, Massachusetts, and Virginia had ceded any territory, an ordinance was passed providing for the survey of these lands, and the uses to which they should be put. One seventh part was to be drafted for "the late Continental army," and the remainder allotted among the states. The only reservations made were for the officers and soldiers entitled to bounties from the lands of Virginia; four lots in each township for the United States, and "lot No. 16 of every township for the maintenance of public schools within the said township; also one-third part of all gold, silver, lead, and copper mines to be sold or otherwise disposed of as congress shall hereafter direct."⁶

As the other states made their contributions to the public domain, changes were made in the appropriation of land for educational purposes, but without affecting the reservation first determined upon of one thirty-sixth part of all the government lands for school purposes. As our land system developed, and states were parceled off one after another, the propositions offered to them more and more contained large donations for schools of different grades. The proposition to the State of Ohio, and the appropriations actually made in 1803, named the sixteenth section in every township in that part of the territory purchased of the Indians; the thirty-sixth part of the United States Military Tract; fourteen townships in the Connecticut Reserve; one thirty-sixth part in the Virginia Military Tract, and also one thirty-sixth part of all the United States lands in the State of Ohio to which the Indian title had not yet been extinguished, to be purchased of the Indians, to consist of the sixteenth section in each township. One entire township in the District of Cincinnati was offered for the establishment of an academy. John Cleve Symmes and his associates, who had purchased a tract in Ohio supposed to contain one million acres, received from congress, in addition, one entire township "for the purpose of establishing an academy and other public schools and seminaries of learning."

When the public lands in Louisiana were offered for sale there was excepted "section number 16 in every township, and a tract reserved for a seminary of learning." When Tennessee relinquished her claims to certain lands, the state was required to appropriate one hundred thousand acres in one tract for the use of two colleges, one to be located in East and one in West Tennessee. Another hundred thousand acres was to be appropriated for the use of an academy in each county in the state, the land not to be sold for less than \$2 per acre; and the state should, in issuing grants and perfecting titles, locate one section in every township for the use of schools for the instruction of children forever. Mississippi was required to reserve section 16 in each township for the support of schools within the same, "with the exception of thirty-six sections, to be located in one body by the Secretary of the Treasury, for the use of Jefferson College." Other grants were made for religious purposes, and for military services. Lewis and Clark, for their services in exploring the continent to the Pacific, received land warrants calling for one thousand six hundred acres of land each, and the men who accompanied them three hundred and twenty each, to be located on any of the public lands offered for sale west of the Mississippi. None of these donations could be made except by the consent of the representatives of the people in congress assembled. Thus our government set out with the highest ideal then possible of community rights in land. If since then we have gambled away our common heritage, or sold it to non-resident speculators, we have in so far departed from that ideal.

The largeness of the subject prohibits any attempt to furnish a history of the land laws of the United States in a single article. It is in fact the history of this nation. Our land system settled the country from the Atlantic to the Pacific. It drew to us all the nations of the earth; it gave them homes, and educated their children; it was "Liberty enlightening the world." But just because the government was so rich in lands, it grew careless, speculative, even profligate. It lavished soil enough to make several states upon corporations without honor, forgetting that it was only the trustee of the people, whose consent had never directly been asked. It sold to adventurers, who never intended to make homes, immense tracts contiguous to watercourses, from which the buyers excluded citizens of the United States. It winked at the wrongful acts of its agents in selecting swamp and overflowed lands, and mineral lands. One thing it never did, however; it never permitted the school lands to deteriorate in value, but when the legal

sections fell upon worthless ground, lieu lands were permitted to be selected from any unappropriated good land most contiguous.⁷

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In the first quarter century of the republic there was added to its public lands, by treaty and purchase, the Floridas and all the vast region known as the Louisiana Territory, reaching north to the British Possessions and west to the Rocky Mountains. One of our navigators had discovered the mouth of the mythical Oregon River, and a party of our explorers had discovered the headwaters of the same, following its course to the sea. An American fur company had erected a fort near the mouth of the river, which it lost, first through the treachery of the British members of the company and a second time by the fortunes of war, and finally recovered through the victory of our arms on the high seas. These were wonderful achievements for a nation in its infancy. But the people were prosperous and satisfied, pressing undauntedly forward, and filling up the new states. The secret of the prosperity and content was the equal distribution of land, at a price within the reach of any, and the reservation in all the townships for common schools.

We claimed by right of discovery and first occupation, the Oregon Territory. Great Britain disputed our claim with enough show of rights to furnish some ground for the contention. Neither government was prepared to go to war over it, and for nearly thirty years after the convention of 1818 by which a joint occupancy was agreed upon, a perpetual irritation was kept up between the two countries through the determination of the western pioneers to stretch their boundaries to the Pacific, taking the land surveyor along with them. In 1846 the question was finally settled, and not unjustly.

The pioneers who for several years had been toilsomely journeying across two thousand miles of wilderness to reach the Land of Promise, now looked for immediate congressional action to be taken which should give them formally the territorial rights and privileges conferred by the Ordinance of 1787. But in this they were disappointed. That same ordinance, it was, which delayed the organization of a territorial government, the people of Oregon having expressly petitioned to be organized under it in the same manner as the Northwestern States. The opposition to their petition came from the representatives and senators of

the slave states, who saw in the rapid increase of northern free states a loss of the balance of power in congress, and the threatened destruction of slavery, or of the Union. The struggle had been begun a quarter of a century earlier, when by a compromise between the north and south, Missouri had been admitted as a slave state under a compact that no more slave states should be organized north of the parallel of 36° 30'.

The prospect of a large body of free states being formed above that line, extending even to the Pacific, was one to which southern senators opposed their most skilled diplomacy, their object being to gain time, by statecraft or otherwise, to extend slave territory westward at an equal rate. But the friends of Oregon in congress, who cared not overmuch about the question of slavery or of free soil, were touched by the fidelity to the government of the United States of the Oregon settlers, and anxious to have them rewarded as congress had, year after year, proposed to do—by liberal donations of land. The Linn bill had done its work in populating the Wallamet Valley, and the population of this valley had determined the title to the country. So much was granted. Thomas H. Benton had written his congratulations on the settlement of the boundary, and promised the early organization of the territory under the most favorable conditions. President Polk had spoken most flatteringly of the loyalty and patriotism of the pioneers. Stephen A. Douglas had drawn up a bill containing everything for which the pioneers had ever asked, and something more. That something more was the thirty-sixth section of land in every township for school purposes, in addition to the sixteenth.

I am aware that there are some writers who represent that this addition to school land was a special favor to Oregon; and at least one Oregon man who claimed to have secured it by his personal efforts.⁸ But the records of congress disprove such pretensions. It was sometimes objected in congress that the new states were receiving too much land gratuitously.⁹ In a speech on this subject by Woodbridge, of Michigan, delivered April 29, 1846, that gentleman said: "Now, a very great error prevails on this subject. It is a common opinion, I believe, that the school lands, amounting, as the gentleman from Connecticut says, in some instances, to an enormous amount, are gratuitously conveyed to the new states. Sir, I do not so read my books at all. There is no gratuity about it! This appropriation of section sixteen was made in order to secure an accelerated sale of your wild lands. I

do not say that there were not other and higher motives, but this was one, and an efficient one. * * * You published to the world your terms of sale. You pledged your faith to all who should buy land of you in any surveyed township, that one thirty-sixth part of it, namely, section number sixteen, should forever afterwards be applied toward the support of schools. * * * It is true that you afterwards affected to transfer these school lands to the states; but what passed by that transfer? Nothing, sir, but the naked title only, subject always to the use, and I am not prepared to admit the competency of your doing even that." So there were in congress, in 1846, men who contended that the western people, and not the government which had solemnly renounced it, held the right to the educational reservations in the public lands from the beginning.

In August, 1846, a bill being before congress to enable Wisconsin to form a state government, it passed through the usual routine, and was reported from the territorial committee by Douglas, February 9, 1847. On the fifteenth, the question of engrossing the bill was about being put, when John A. Rockwell of Connecticut, moved to amend by adding the following: "And be it further enacted, That in addition to section numbered sixteen, section numbered thirty-six, in each township of the public lands of the United States in said state, not heretofore otherwise disposed of, be, and the same is hereby appropriated to the support of education in the said state." Certain conditions were attached, which need not be here quoted, as the amendment failed.^{[10](#)}

That it failed was not owing to any strong opposition so much as to the fact of its not being incorporated in the original bill. Congressmen and senators have to be urged somewhat to make changes by which their districts gain nothing. Rockwell's amendment was crowded out by other business concerning the disposition of the public lands then claiming attention.

Nothing in the circumstances of the case goes to show that Mr. Rockwell was the first to propose the additional school section. The Wisconsin and the Oregon bills were in the hands of the same committee of the house, and at the same time. Yet the Douglas bill contained the two school sections in every township, and the Wisconsin bill did not. The Douglas bill passed in the house and was sent to the senate in January, 1847, whereas the Wisconsin bill was not reported until February, which

gives Mr. Douglas precedence in proposing the change to congress. The question might arise why, since he was chairman of the committee which presented both bills, he withheld the additional section from one and gave it to the other. Did he wish to show favor, or seem to do so, to Oregon, as a reward for her long and loyal waiting? It might well be so, and probably was so.

But Oregon was not receiving a special gift in the appropriation of her school lands, as some suppose. In November, 1846, James H. Piper, Acting Commissioner of the General Land Office, made a report to Robert J. Walker, Secretary of the Treasury, "on the expediency of making further provision for the support of common schools in the land states."¹¹ The Secretary, in his report to the house of representatives, referring to the proposed donations of land to settlers in and immigrants to Oregon, recommended, also, "the grant of a school section in the center of every quarter of a township, which would bring the school house within a point not exceeding a mile and a half in distance from the most remote inhabitant of such quarter township."¹² In his report for 1847–48 the Secretary of the Treasury again referred to this subject as follows: "Congress to some extent adopted this recommendation, by granting two school sections instead of one, for education in Oregon;¹³ but it is respectfully suggested that even thus extended the grant is still inadequate in amount, while the location is inconvenient."¹⁴

William M. Gwin, Senator from California, remarking on the transfer of the public lands from the Treasury Department to the Department of the Interior in 1849, says: "When a territorial government was established over Oregon, some able men contended for four sections for each township, and they succeeded in getting two," and quotes from Walker's report.¹⁵ He also referred, in a speech before the State Convention of California in 1850, to Piper and Walker as authors of the movement to increase the amount of school land in the new states. Although not important in themselves, these facts are interesting. It is a pleasure to the properly constituted mind to know to whom to give credits. It is also a satisfaction to remove from history falsehoods, whether deliberate or accidental, which blind our vision as to the verity of so-called history.¹⁶

As a matter of fact, from 1803 to 1848, in each of the twelve territories organized from the public lands, the sixteenth section in every township was reserved for school purposes, Oregon being the first to receive the addition of the thirty-sixth. There has been no fixed rule of appropriation, much depending upon the people and their representatives. In 1812, and again in 1824 congress ordered a survey of certain towns and villages in Missouri, reserving for the use of schools one-twentieth part of the whole survey. When sold these town reservations produced large sums, as in the case of St. Louis. Down to 1880 seven states and eight territories had received the thirty-sixth section in each township. Twenty-four states had received two townships each for the use of universities. Ohio, Wisconsin, Minnesota and Florida had taken more. Previous to 1882 the appropriation of land for common schools in the land states aggregated sixty-seven million eight hundred and ninety-three thousand nine hundred and nineteen acres; for university purposes, one million six hundred and fifty thousand five hundred and twenty acres; for agricultural and mechanical colleges, nine million six hundred thousand acres—a total of seventy-nine million one hundred and forty-four thousand four hundred and thirty-nine acres devoted to the support of education in the United States.

From time to time it has been necessary to make changes in the land laws, as when the discovery of mineral lands, reserved by congress called for the substitution of lieu lands, but there has been no diminution in quantity or value.

Oregon has less vacant or public land than from its area might be expected. The bounty of government in donating to the pioneer settlers six hundred and forty acres to a family—three hundred and twenty to the husband, and the same amount to the wife—and to single men and women three hundred and twenty each, provided they lived upon or improved their claims, disposed of most of the cultivable area west of the Cascade Range. The school lands which passed with the territorial act occupied two thirty-sixths of every township. The act of admission passed to the state the usual endowment of five hundred thousand acres for its public uses,¹⁷ with twelve salt springs and six sections adjoining each; ninety thousand acres for the endowment of an agricultural college, and seventy-two sections for the use and support of a state university. Subsequent grants to railroads and public highways, with military and Indian reservations, absorbed large bodies of

land, both in the valleys and the mountains. The state devoted the net proceeds, with the accruing interest of the five hundred thousand acres, as an irreducible fund for the support of common schools, and for the purchase of libraries and apparatus.¹⁸ It also added to this fund all gifts to the state whose purpose was not named.

The actual quantity of land allowed by congress to Oregon for common school purposes is three million two hundred and fifty thousand acres, at a minimum price per acre of \$1.25, the management of the income being left to a board, of which the Governor is one. I am informed by the clerk of this board that the fund now amounts to \$3,000,000, which is securely invested at ten per cent.

In 1850 congress passed a swamp land act, the intention of which was to enable the states subject to overflow by the Mississippi, to construct levees, and drain overflowed lands. The law was subsequently extended to other states. Oregon, however, had no rivers requiring levees, nor any swamp lands. This fact did not prevent beaver-dam lands, the most valuable in the state, from being taken up as swamp lands. The scandal attached also the meadow lands about lakes in the interior, and even to lands included in Indian reservation lands. Nor is congress quite guiltless in this respect, since it has recklessly granted principalities in the public soil to aid enterprises designed by private companies for their own benefit, these grants being obtained by representations, wholly unfounded, of the public utility in the undertaking.¹⁹ The hand of the lobbyist is visible in these matters, while suspicion attaches to both state and national legislators, who too frequently have other than the people's interest at heart.

The vacant public lands of the United States are still nine hundred and eighty thousand three hundred and thirty-seven square miles in extent, or one-third of our total area, exclusive of Alaska. Indian reservations and forest reservations together occupy five and forty-three hundredths per cent. The State of Texas comprises eight and eighty-three hundredths per cent. of the area of the United States, and owns all the public lands within its borders. Thus there remains open to settlement the vacant one-third, exclusive of Alaska, Texas, and the Islands. Almost all of the vacant lands are west of the Missouri River, and include much that is of but little present value to the agriculturist from its aridity. Yet not one rod of it is valueless in the eyes of the political economist. Forests and mines are as necessary to

advanced civilization as grain fields and orchards. But even were this not true, the earth needs waste places where pure air and pure water are generated to be furnished to the lower plains. Men will gradually accustom themselves to deserts, and will cause them to blossom like the rose. Wherever they go, the foundation of a home is awaiting them, and the common school is provided for their children. It is thus we are educating the nations.

It can hardly be superfluous to revert to the obligation of the general government and the individual state to remember and guard the people's rights in the public domain. A wastefulness which tends to contract free acreage beyond the convenient demands of settlement and use, is to deprive the nation of strength and elasticity. When we have no longer anything to offer the coming generations, it will be a pity if they come. The power of the great land owner over the man who has inherited nothing, and is too poor to purchase at the landlords' prices, will be, to all intents and purposes, the same which the landlords of Europe exercise over the peasant classes there. The ladder by which our people have climbed to happy heights of prosperity will be withdrawn, and the poor man will have become the slave of the rich man. It is doubtful if the universal intelligence which we are at so much pains to cultivate will be, in such circumstances, an unmixed blessing, since the enlightened mind has requirements which are not felt by the ignorant, the absence of which inflicts pain, and frequently leads to crime.

FRANCES F. VICTOR.

1 The lands not held as private estates in Great Britain were known as the "Crown lands," the revenue from which was the income of the sovereign. This continued down to the accession of George III. This custom continued down to Victoria, who, renouncing the crown lands, accepted for herself and her children a fixed sum annually, but this annuity does not descend to her grandchildren.

2 The history of the early voyages, and of the immigration to America of different nationalities, including the Dutch, is too familiar to be repeated here, and a period of nearly three hundred years, from 1497 to 1783, is passed over. With independence, the American states

received an inheritance of which they hardly understood the value at the time, except for its political importance.

[3](#) It would seem from this demand of Virginia that this state assumed to lay claim to all the Northwest Territory. However, it could make no difference, since the other states had ceded whatever rights they had, except to strengthen the title of the general government.

[4](#) There is much that is confusing and contradictory in the act of North Carolina, as in the reference to the ordinance of 1787, and the clause forbidding the passage by congress of an act tending to emancipate slaves.

[5](#) The Constitution of the Provisional Government of Oregon was formed on the ordinance of 1787, and the above extract is taken, somewhat abbreviated, from Articles I, II, III and IV of that document. When the organic act of Oregon Territory was framed by congress, it was agreed that the laws already in operation in Oregon should be recognized as the laws of the territory. The adoption of the ordinance of 1787 as their Constitution by the pioneers of the state, was due to the statesmanship of Jesse Applegate, one of the "men of 1843." Its author was Nathan Dane, LL. D., of Massachusetts, member of congress in 1787.

[6](#) Subsequently the reservation of gold, silver, and copper mines was discontinued, and lead mines and salt springs substituted. The income from these sources at that period would have been greater than from other mines. But no change was ever made from 1785 to the present date in the grant of the sixteenth section for school purposes.

[7](#) A great deal of unwise criticism has been declaimed and written upon the government's dealings with the Indians in the matter of their reservations. But human wisdom has seldom been able, however sincere the endeavor, to bridge over with peace the gulf between savagery and civilization. The United States began by binding the government in the ordinance of 1787 to "observe the utmost good faith towards the Indians." During the first ten years of its existence, treaties were made with half a hundred tribes. It was declared a

misdemeanor, punishable by fine and imprisonment, for any persons, not acting for the government, to treat with, or purchase lands from an Indian nation—an inhibition meant to prevent trouble with the natives, as well as frauds against the government. But Indian wars were not prevented, and continue to this day. The United States has supported an army to defend its citizens against savage outbreaks. Every congress appropriates large sums for the support of its Indian wards, and for their education. According to recent reports, the Indians of New Mexico cost the government, in 1897, for each pupil in the Indian schools, \$167, or a lump sum of \$41,750, over and above the pay of the superintendent, and other expenses. The Indian school at Salem, Oregon, for the same year, cost the treasury \$50,100, and the support of the establishment, \$71,700. The Indian reservations, including Indian Territory, comprise four and forty-three hundredths per cent. of our public lands, exclusive of Alaska. The whole Indian population of the United States is officially stated at two hundred and ninety-seven thousand. Of these forty-two thousand five hundred and ninety-seven can read; over fifty-three thousand can converse in English. The government has built for them twenty-six thousand three hundred and eighty-nine dwelling houses, besides schoolhouses, and there are three hundred and forty-eight churches on the reservations. Religious and other societies have contributed large amounts for school and church purposes. The money collected in 1899 for the instruction and advancement of "the nation's wards" was \$261,515; for general church work, \$119,407. New York this year contributed for an Indian school in that state \$16,016. The senate bill this present year for an Indian school at Riverside, California, proposed to appropriate \$75,000. Another Indian school at Perris, California, gets \$167 per pupil for one hundred and fifty pupils. The whole appropriation for the support and education of Indians in 1900 is \$8,414,000. At this rate is the nation still paying for its public lands.

8 Mr. J. Quinn Thornton, who came to Oregon late in 1846, was appointed a judge under the provisional government by Governor Abernethy, and was sent as a delegate to Washington late in 1847, arriving there May 11, 1848, several times during his lifetime publicly asserted, in written articles and in addresses delivered before

the Pioneer Association, that he was the author of the Douglas Bill. By comparing dates it will be seen that he could have had nothing to do with the bill, which was introduced in the house December 23, 1846, soon after the boundary treaty. It passed the house January 16, 1847, was sent to the senate, amended, and laid upon the table March 8, 1847. In 1848 Douglas was a senator, and Chairman of the Committee on Territories. On the tenth of January the Oregon bill came up, was referred to Douglas' committee, and reported, without amendments, February 7. This was the identical bill over which senators wrangled in so dramatic a fashion until the last hour of the session, in August, 1848. A compromise bill was devised by the southern members, by which Oregon could come in in company with New Mexico and California, but congress would have none of it. There was no opportunity during Thornton's stay in Washington to alter or amend the Oregon bill, which, when it passed the senate, was in all essential features, including school lands, the same bill which was published in the *Oregon Spectator* of September 16, 1847, more than a month before Thornton set sail for his destination. As the *Spectator* was the only newspaper in Oregon at that time, and owned and controlled by the Governor, it is fair to presume that it was read by the Governor's appointee. Notwithstanding these adverse circumstances and conclusions, Mr. Thornton never ceased to claim the authorship of the organic act of Oregon, nor to congratulate himself upon having bestowed upon this and other new states the priceless benefit of school lands. "I will frankly admit," he says in his autobiography, "that when to this section (the sixteenth) of the public lands, the thirty-sixth was added by the passage of this bill, the thought that Providence had made me the instrument by which so great a boon was bestowed upon posterity filled my heart with emotions as pure and deep as can be experienced by man;" and goes on to anticipate being recognized as a benefactor of his race when his toils and responsibilities should be over. See Transactions of the Oregon Pioneer Association for 1874, and some later numbers, for these false claims. Also the Portland *Oregonian* of May 15, 1885, in which he distinctly denies the facts of history, and relates incredible occurrences with such minuteness of detail and loftiness of expression as to deceive any but the well informed in public affairs.

The ordinary reader could not conceive such mendacity and dissembling.

[9](#) The older states made such provision as they could for education. Connecticut reserved some of her lands for popular education, and any state had the same right, but the "land states," as they were called, offered lands for seminaries of learning, and universities, two entire townships being the usual amount granted for this purpose, besides the thirty-sixth part set aside by compact.

[10](#) Rockwell had given notice of this amendment on the tenth of May, one day before the arrival of Thornton in Washington. See his "Oregon and California," vol. 2, p. 248. Therefore Mr. Rockwell's idea did not originate with Mr. Thornton. In his article in the "Transactions," for 1883, he makes Mr. Rockwell prophesy that he "will not get the Oregon bill so amended as to set apart two sections in each township, instead of one, as already provided for in the Oregon bill"—forgetting in this instance to claim paternity to both.

[11](#) Says the commissioner: "The expediency of making further provision for the support of common schools in the land states has attracted much attention, and certainly is worthy of the most favorable consideration. Those states are sparsely settled by an active, industrious and enterprising people, who, however, may not have sufficient means independent of their support, to endow or maintain public schools. To aid in this important matter, congress at the commencement of our land system, and when the reins of government were held by the sages of the revolution, set apart one section out of every township of thirty-six square miles. At that early day this provision doubtless appeared munificent, but experience has proved it to be inadequate. It is obviously necessary that at least one school should be established in each of those townships, and to do this they have only the section of land above mentioned, worth about \$800. To invest this sum safely it cannot be made to yield more than \$48 per annum, which will not pay the salary of a teacher for a single month; and the whole of the principal would not enable a township to erect a suitable common school edifice, and employ a teacher for one year. It is evident therefore, that this provision does not go far to accomplish the original design, and that without the aid of other

means the citizens of those growing states cannot obtain the advantages of a general system of education. I would therefore recommend that further grants of land be made for that object, and wherever the lands reserved for the use of schools are found to be valueless, that the proper officer of the state be authorized to select others in lieu of them. * * *

"With great respect, your obedient servant,

"JAMES H. PIPER,

"Acting Commissioner.

"HON. ROBERT J. WALKER,

"Secretary of the Treasury."

House Ex. Doc. 9, Vol. II, Twenty-ninth Congress, Second Session.

[12](#) Ex. Doc., First Session, Thirtieth Congress, Vol. 1, 1847–48.

[13](#) This statement that congress "granted Oregon two school sections" calls for explanation. It was only in the Northwest Territory, subject to the ordinance of 1787 by compact, that these sixteen sections belonged, as Woodbridge of Michigan contended, to the states formed out of that territory. Where other states received them it was by grant of congress.

[14](#) The Secretary urged other reasons for the additional grants. "Even as a question of revenue," he says, "such grants would more than refund their value to the government, as each quarter township is composed of nine sections, of which the central section would be granted for schools, and each of the remaining eight sections would be adjacent to that granted. Those eight sections thus located and each adjoining a school section, would be of greater value than when separated by many miles from such opportunities, and the thirty-two sections of one entire township, with these benefits, would bring a larger price to the government than thirty-five sections out of thirty-six, where one section only, so remote from the rest, was granted for such a purpose. The public domain would thus be settled at an earlier period, and yielding larger products, thus soon augment our exports and our imports, with a corresponding increase of revenue from

duties. The greater diffusion of education would increase the power of mind and knowledge, applied to our industrial pursuits, and augment in this way also the products and wealth of the nation. Each state is deeply interested in the welfare of every other, for the representatives of the whole regulate by their votes the measures of the union, which must be more happy and progressive in proportion as its councils are guided by more enlightened views, resulting from more universal diffusion of light and knowledge and education."—Ex. Doc., Second Session, Thirtieth Congress, Vol. II, 1848–49.

[15](#) Gwin's Autobiography, Mr. Bancroft's Hist. Cal. VI, 298.

[16](#) I must be pardoned if I once more call attention to the willful perversion of truth by the talented but unscrupulous J. Quinn Thornton. In the transactions of the Pioneer Association for 1874, speaking of the Oregon bill and the school-land grants: "Up to the time of the passage of this bill, congress had never appropriated more than the sixteenth section for the support of common schools; and the *late* Nathan Dane, LL. D., had labored long before he succeeded in inducing the government to appropriate *that* portion of the public lands." The italics are mine: the word "late," to call attention to the fact that Doctor Dane had been dead for thirty-nine years, having passed to his reward in 1835, after a useful and honorable life; the word "that," because in another place Thornton claims himself to have induced the government to make this appropriation. It is difficult to deal with such constant shuffling with the intention to deceive. A different unintentional error occurred in the course of my investigations, when, in 1882, I wrote to the Department of the Interior for information as to the first act of congress reserving the thirty-sixth section in each township for school purposes, and was informed by the commissioner that "the act was approved March 3, 1849 (U. S. Statutes, Vol I, page 154), entitled an act to establish the Territorial Government of Minnesota." He had overlooked the fact that the organic act of Oregon, which passed on the fourteenth of August, 1848, contained the same appropriation. This was probably because it was in 1849 that the affairs of the land office were turned over to the interior department, and he had not searched the previous records.

[17](#) Act of Congress of September 4, 1841.

[18](#) The canal and locks at Oregon City were built out of the first proceeds of the five hundred thousand acres, when it was converted to the school fund to prevent its appropriation to local schemes of minor importance.

[19](#) By act of July, 1864, congress granted to the State of Oregon, to aid in the construction of a military wagon road from Eugene to the eastern boundary of the state, alternate sections of the public lands designated by odd numbers, for three sections in width on each side of the road, the United States to share in it as a military post road. The land was to be sold in quantities at one time of thirty sections on the completion of ten miles, and within five years, failing which, the land reverted to the United States. The grant amounted to one thousand nine hundred and twenty acres per mile for a distance of four hundred and twenty miles—or more than all given to the state on its admission by one hundred and fifty thousand acres. The company was allowed a primary sale of thirty sections with which to begin surveying. A road was opened from Eugene to and over the mountains in 1867, which was little used or useful. In 1873 the land grant was sold to a San Francisco company, and this immense government gift passed to private ownership in another state.

GLIMPSES OF LIFE IN EARLY OREGON.

As we travel through the Willamette Valley with the dispatch and comfort of a well-equipped railway service, we are quickly forgetting how our fathers and grandfathers journeyed. Pioneer experiences and hardships are memories of long ago; another century is dawning, and we say that "the new is better than the old."

In the early days of the settlement of this state the horse was the only means of travel, unless one's course lay along the Willamette, and then it was the canoe with paddles that carried trappers, explorers, and occasional Hudson's Bay officials on their journeys. The native grasses were luxuriant and abundant, the climate mild, and every settler's door stood hospitably ajar. Journeying was by easy stages and not irksome. It is pleasant to remember that there was a time when one had time to be leisurely and greet one's friends in a kindly, simple fashion. Civilization was gathered within the four walls of Fort Vancouver, on the Columbia River. Our greatest friend, John McLoughlin, was the chief factor of all the Hudson's Bay Company's establishments west of the Rocky Mountains, and children who have been born in the original Oregon Territory may well "rise up and call him blessed."

The good "old doctor," as he was respectfully and affectionately called, cheered the hearts of thousands of immigrants by his deeds of gracious humanity. With a generous hand he furnished provisions, clothing, cattle, grain, and farming implements, taking in return the immigrant's word that he would ever be repaid; the word was sometimes kept and oftentimes broken. Doctor McLoughlin conducted life at Fort Vancouver as feudal lords of old, and that, too, with strict military discipline; the coming and going regulated by the ringing of the great bell. The members of this large household breakfasted and supped by their own firesides, but dinner was served in the hall for gentlemen and visitors. All stood while the doctor said grace, and men of humble birth "sat below the salt." Distinguished men gathered at this board. Foremost among them we reckon Douglas, the

botanist, to whom the doctor furnished escort and transportation. As he took his way through the Willamette Valley, and on to the Rogue River, it became a journey of months. His investigations covered a wide stretch—the lowly flower by the trail, the myriads of brilliant blooms on the breeze-swept prairies, the shrubs and vines of hillside and canyon, and towering evergreens on lofty mountain heights. In order to study plant life he watched it from the bursting bud in April showers, through sunny summer weather, to the autumn maturing of the seed. Be it remembered that Douglas first made the world acquainted with the three kingliest products of our forests—the giant spruce of the Oregon wilderness, the solemn fir of the cloud-drift region, and the sugar pine of the Sierras. This clever man met with a tragic death in the Sandwich Islands, for he fell into a pit dug for wild cattle and was gored to death by a bull.

Geologists searching the distant field, and titled gentlemen traveling for pleasure, shared the doctor's hospitality, and were given escort through the beautiful pastoral country. With the ingress of the Americans Oregon City became the place of importance next to Fort Vancouver, and when Doctor McLoughlin was called there on business, he set out in a bateau, manned by French-Canadian voyageurs, who, clad in their gay national dress, sang gay Canadian boating songs to the rhythm of the paddles. The doctor sat aloft in the stern, erect and dignified, dressed in a long blue-cloth coat, with brass buttons, buff waistcoat and dark trousers, and a gray beaver hat. The garments were fashioned in London, and the making of beaver hats has been a lost art these many years. When the doctor reached Oregon City he clambered up the rocky path and paced the single street, carrying a gold-headed cane, and with his brilliant blue eyes and flowing white locks, his was a face and figure never to be forgotten. This great-hearted man and friend of the pioneers lies by the side of his wife in consecrated ground, within sound of the Falls of the Willamette.

We can understand what a sore deprivation the absence of books and papers was to the pioneers of the "forties." One man in the Yoncalla Valley, who had accumulated several hundred dollars, called his children about him and asked if he should build a house to replace the log cabin, or buy "Harper's Complete Library," consisting of many volumes bound in "12mo." Be it to their lasting credit, the books were purchased, carefully read and remembered, and preserved for succeeding generations.

Another man, troubled lest his children be cut off from civilizing influences in their frontier life, built and furnished a house at great expense and in a style that was not equaled for many years nor within many miles. He lived to see his lands and house swept from him, through the dishonesty of another, but not before the attractive home surroundings had served their purpose. This brave man spent the declining years of trouble and sorrow on the mountain-side overlooking the fair valley, where once lay his own broad acres, and no man had ever been turned from his door. The letters written through all the years of this man's life in Oregon are marvels of style and composition, and greatly treasured by their fortunate owners. Especially so are those of his later years, when riper experience and a keener insight into men and events lent greater force to his pen, so that a man of great culture and polish once said: "They sound as if written from a baronial castle, whereas they come from a log cabin."

On the western slope of the Willamette there was another where all books and papers were most carefully preserved, so that the third generation of descendants is now able to read a file of the *Oregon Spectator*, published in 1846 and 1847. The paper was placed over a string stretched across the cabin, until they were all carefully laid by. An English gentleman, accompanied by a guide and traveling in pursuit of game and pleasure, once craved food and shelter at the cabin door. He was cheerfully bidden to enter and partake of the unvarying fare of boiled wheat and possibly beef, and the earthen floor and a buffalo robe served as a bed. The gentleman met his host and hostess in Washington afterward, and when the latter spoke of the meager entertainment in Oregon, he said: "Ha, but you gave me the best you had; the Prince of Wales could do no better." A roomy, comfortable house replaced the log cabin, and its door, too, stood ajar, and all were welcomed to the kind and simple hospitality. Young officers from West Point, on first frontier duty, passing to remote mountain garrisons and out again for brief glimpses of civilization, had cordial greeting. Some of these died like brave soldiers on the battle-fields of the civil war. Others attained rank and distinction in the service, and two at least won the highest honors ever conferred by an appreciative country.

Every governor and senator of Oregon has claimed the welcome extended, unless it be the present incumbents, and though the master and his gentle wife have passed out for the last time, those, too, would be kindly

greeted beneath the old roof. Preacher and circuit-rider, humbly following in the footsteps of their divine Lord, students and distinguished statesmen gathered about this fireside. Best of all were the times when the earliest pioneers honored it with their presence, and the quaint telling of tales of adventure, privation and Indian warfare lasted far into the night, and the logs burned low on the hearth.

The lack of schools was deeply deplored by many of these hardy pioneers, men and women, though some were more fortunate. Many remember with affection and respect one who came from her New England home and most conscientiously taught the fortunate children entrusted to her care. School days under her wise and kind guidance, and oftentimes in most picturesque spots, are bright and happy memories of many men and women today. One family spent years of happiness and contentment on a lonely sea shore, and were taught by a governess, while the play-time was spent among the beautiful groves and watching the waves so full of interest and mystery. A peaceful happy life, but in their longing for companionship they fed sugar to two house flies on the window-sill in stormy weather,—for house flies were not then a pest.

Sometimes the housewife was of another nationality, and claimed a prior right to this beautiful valley. A judge once traveling across Tualatin Plains in the winter was belated by a storm and asked shelter at a trapper's door. He was given a place by the blazing hearth, and the dusky housewife, busy about the evening meal, placed before them potatoes, deliciously roasted in the ashes, venison, bread, butter, milk and tea, while the host interestingly told of having known Captain Bonneville and his party on the plains, as well as members of the Rocky Mountain Fur Company. In his journeys he knew the watershed of the Columbia and Missouri by heart, and in one night had set traps in both rivers.

One of Oregon's most polished and charming of her earlier pioneers, was entertained at a frugal board, and in graceful acknowledgment sent the hostess some soup plates from the Hudson's Bay store, and a daughter of the house exhibited them to him forty years afterward. Although he returned to New England to spend many of the last years of his life, his interest in Oregon never waned, and during his visits here his reminiscences of early days were a delight to those who were so fortunate as to hear them.

The first school opened in the original Oregon country for American children was by Doctor Whitman at the Waiilatpu Mission, on the Walla Walla River. The school was attended by the children of missionaries, those who were left orphans, and the children of immigrants who were belated by winter storms and kept from entering the Willamette Valley.

Eliza Spalding was born at Lapwai Mission in 1837, and at ten years of age was sent to Whitman's station in charge of a trusty Nez Perce woman. These two journeyed alone on horseback three days, and camped as many nights by the trail. The air was cold on the table land adjacent to the Snake River, but the child was tenderly cared for by this faithful woman. Eliza was interpreter, owing to her thorough knowledge of Nez Perce, but her school-time at the mission was brief. Fifty years afterward she told of the awful tragedy that ended the life-work of a great and good man and his wife, and those others who shared their fate. Half a century had not obliterated the traces and impression of the horrible crime from the sensitive mind of her who was a child at the time of the massacre.

A little school established in Polk County, early in the forties laid claim to the ambitious title of institute. Whether in the spirit of true democracy, or as a deserving tribute to the great mind that conceived the possibilities of this western land, and with marvelous foresight planned the Lewis and Clark expedition, this little log school house bore the name of the Jefferson Institute. The man who presided there remembered the lore of earlier years, and equally well had he treasured the books of that more fortunate time.

Men and women are living who owe a debt of gratitude to John E. Lyle, and remember with deep affection and respect that he first pointed out the narrow path that led far afield in the great world of study and literature of today.

The theme is endless, when we begin to recall the men and events of other days; much has been written and preserved, and much lost to the world because the demands of later times were great, and those who might have recorded faithfully and well went out into the great beyond without having benefited Oregon's story by handing down such a record.

MRS. WILLIAM MARKLAND MOLSON.

NOT MARJORAM.

THE SPANISH WORD "OREGANO" NOT THE ORIGINAL OF OREGON.

The textbooks in the hands of our children in the public schools continue to furnish them with the erroneous information that the name of the State of Oregon was derived from the word "oregano," the Spanish name for the plant that we call marjoram. This is mere conjecture, absolutely without support. More than this, it is completely disproved by all that is known of the history of the name. There is nothing in the records of the Spanish navigators, nothing in the history of Spanish exploration or discovery, that indicates even in the faintest way that this was the origin of the name, or that the Spaniards called this country or any portion of it by that name. There is marjoram here, indeed; and at a time long after the Spaniards had discontinued their northern coast voyages it was suggested that the presence of marjoram (oregano) here had led the Spaniards to call the country "Oregon."

From the year 1535 the Spaniards, from Mexico, made frequent voyages of exploration along the Pacific Coast towards the north. The main object was the discovery of a passage connecting the Pacific and Atlantic oceans. Consequently the explorers paid little attention to the country itself. After a time, finding the effort to discover a passage fruitless, they desisted for a long period. But after the lapse of two centuries they began to establish settlements on the coast of California; and then voyages towards the north were resumed by some of their navigators. In 1775 the mouth of the Columbia River was seen by Heceta, but, owing to the force of the current, he was unable to enter. The fact here to be noted is that the Spaniards of that day did not call the country Oregon, or, if they did, they have left no record of it.

But even before the discovery of the Columbia River by Heceta the name of Oregon appeared in another quarter. Jonathan Carver, of Connecticut, who had served as a captain in the colonial war against the French, set out from Boston in 1766 and proceeded by way of the Great

Lakes to the region of the Upper Mississippi, now forming the States of Wisconsin, Minnesota and Iowa. He returned to Boston in October, 1768, and then went over to England, where his "Travels" were published. From that journey to the Upper Mississippi region he brought back the name of Oregon, which he says he obtained from the Indians there. "From these nations," he says, "together with my own observations, I have learned that the four most capital rivers of the Continent of North America, viz., the St. Lawrence, the Mississippi, the Bourbon (flowing into Hudson's Bay), and the Oregon, or River of the West, have their sources in the same neighborhood. The waters of the three former are within thirty miles of each other; the latter, however, is rather farther west."

Carver, of course, had a geographical theory, and was seeking to verify it. This is the first mention of the name of Oregon that has yet been discovered. Carver either invented the word, or produced it from imitation of some word spoken by the Indians. There certainly was no "oregano," or marjoram, about it.

The word "oregano," it may be noted, has curious usage in Spanish authors. One of Sancho's proverbs, literally translated, runs thus: "Pray God, it may prove marjoram, and not turn out caraway for us." It is said to be unexplainable why marjoram and caraway in Spain should have been taken as types of the desirable and undesirable. In another place Sancho says: "I would not have him marjoram (oregano), for covetousness bursts the bag, and the covetous governor does ungoverned justice." Here the word is used in the sense of "eager for gain."

Others have professed or proposed to derive the name of Oregon from the Spanish word "oreja," the ear—supposing that the Spaniards noted the big ears of the native Indians and named the country from the circumstance. But the Spaniards themselves have left no record of the kind; nor has it been noted, so far as we are aware, that the ears of our Indians were remarkably large. The word "orejon" is nearer our form; it signifies "slice of dried apple," we may suppose from its resemblance to the form of the ear. Many years ago Archbishop Blanchet, of Oregon, while in Peru, noted a peculiar use of this word "orejon" in that country, which he ingeniously conjectured might throw some light on the origin of the name of Oregon.

But it is unnecessary to formulate any fanciful theory. The name of Oregon first appears in Carver's book of "Travels" in the Upper Mississippi region in 1766–67. Did he invent the name? Probably. Did he get it from the Indians? Possibly something like it. But it never has been discovered among the Indians of that country since Carver's time, nor anything like it. There remains a possible supposition that French travelers who had passed through that country some years before, and had proceeded on their westward journey far toward the Rocky Mountains, and then returned, had been making inquiries among the Indians as to the great western river that all geographers had postulated, and had spoken a word that the Indians had tried to imitate—possibly "Aragon"—knowing that the Spaniards had explored the western coasts, and intimating that the country by discovery might belong to Spain. But all these are fruitless conjectures.²⁰ We know where we find the name of Oregon first written, when it was written, and by whom; and the circumstances completely disprove the "oregano" and the "orejon" theories. A notable fact it is that a slight incident of Carver's career, so slight that he thought nothing about it—the creation of a name, or the casual use of a name hitherto unknown—has immortalized his own name upon the tongues of men dwelling in the region of his "River of the West." But Minnesota has not neglected him. She does justice to him in her records and historical transactions, and has not forgotten to name a county for him. He died in poverty and misery in London, January 31, 1780.

H. W. SCOTT.

²⁰ Professor John Fiske, in his "History of the United States," says that Oregon "may perhaps be the Algonquin *Wau-re-gan*, 'beautiful water.'"

REMINISCENCES OF LOUIS LABONTE.

By H. S. LYMAN.

Louis Labonte (or Le Bonte), son of Louis Labonte of the Astor expedition, who accompanied Hunt across the continent in 1811–12, is still living at Saint Paul, Marion County, Oregon. He is now eighty-two years old, and is in good health. His remembrance of earlier experiences and life is still fresh and his mind seems very vigorous for one of his age. He says, however, that his recollection of the Indian languages that he once knew has now largely slipped away. These were the Clatsop or Chinook, the Tillamook, Tualatin and Calapooya, of which he says he knew a few words, and the Spokane which he understood almost perfectly. Besides these, he talked fluently in the Indian jargon and in French and English.

He was born at Astoria in 1818, his mother being a daughter of Chief Kobayway, and an older sister of Celiast, or Mrs. Helen Smith. Three years of his early life, about 1824 to 1827, were spent at Spokane Falls, and the three years succeeding at Fort Colville. Then two years, probably 1830 to 1833, were spent on French Prairie. His father had removed to that place and was engaged in raising wheat on a piece of land owned by Joseph Gervais, whose wife was a sister of his mother. From this place he accompanied the family to the farm of Thomas McKay on Scappoose Creek near Sauvie's Island, where he spent three years. In 1836 he removed with the family to a location on the Yamhill River near Dayton. In 1849, being then a well matured man, he accompanied a party headed by William McKay to the gold mines of California, returning the same year. During the Indian war of 1855–56 he was a member of the Oregon Volunteers in the company of Robert Newell, which was stationed at Fort Vancouver to hold in check the Cascade Indians and the Klickitats to the north.

His reminiscences are important on the following: *First*, as to his father, Louis Labonte; *second*, earliest French Prairie; *third*, experiences at Scappoose; *fourth*, Spokane Indians and Indian myths; *fifth*, the names of Indian places and persons; *sixth*, the primitive Indian articles of food;

seventh, on some of the Indian tribes and customs and traditions; and *eighth*, of the original white men.

**I.
LOUIS LABONTE SENIOR.**

Concerning his father, he says that this member of the Astor expedition was born in Montreal, and was about eighteen years old when he came out to Saint Louis, and was there engaged as an employee of the American Fur Company for four years; at the age of twenty-two he was engaged by Wilson P. Hunt of the Pacific Fur Company to come to Oregon, and arrived in the following winter. Upon the disruption of that company in 1814, Labonte took service with the Northwestern Fur Company, which was in 1818 absorbed into the Hudson's Bay Company. He had in the meantime become acquainted with and married at Astoria the daughter of Chief Kobayway of the Clatsop Indians, and it was in the year 1818 that the son was born. Labonte Sr. took six years for the Hudson's Bay Company, and spent three years at Spokane and three at Colville. He then returned to Fort Vancouver and his service terminated some time near 1828, when he asked to be dismissed and allowed to remain in Oregon. This was directly against the policy of the Hudson's Bay Company, who wished none of their trappers to become settlers or free laborers in their territory, and it was the rule that all of their servants must be dismissed at the place where they were enlisted. But Labonte was an astute Frenchman and contended that as he had enlisted in Oregon and was not brought here by the Hudson's Bay Company, it was no infraction of this rule, but rather in compliance with it that he should be dismissed here. Notwithstanding, his request was refused and no dismissal was allowed unless he returned to Montreal. Accordingly, he made the trip to Canada, starting in March, and receiving his regular papers certifying to the ending of his term of service. But he immediately began the journey back and arrived here again in November of the same year—which may have been 1830. This shows him to have been an independent and determined man, and a good husband and father. It may also have had much more bearing than has yet been credited as to the settlement of Oregon.

II. EARLIEST FRENCH PRAIRIE.

After having terminated his service with the Hudson's Bay Company, Labonte evidently made up his mind to become a settler in Oregon, the country of his wife, and with which he was undoubtedly well pleased as a home. Several of his comrades who belonged to the old Hunt party were already contemplating this step, and some had actually begun settlement. Etienne Lucier had first taken a place at the site of East Portland, but, as Labonte remembers, having been informed by McLoughlin that he himself wished to occupy this location, was now removing to French Prairie. Joseph Gervais, however, was already at French Prairie, having laid a claim at Chemaway, a point on the bank of the Willamette River about two and a half miles south from Fairfield at present. Labonte Sr. moved to the place of Gervais and engaged with him in raising wheat, and, among other improvements, built a barn; but did not complete a location of his own.

Louis, the son, remembers more particularly the boyish occupations of the region, of which hunting was the most important. He describes a method of hunting the deer (jargon, Mowich; Calapooya, Ahawa-ia) which, perhaps, has never been placed in print. The deer were very abundant in primitive times, and during the breeding season the bucks were pugnacious. In order to come near to them the Indians would take the head of a deer, including also the hide of the neck, properly prepared, which was placed over the head of the hunter; and he then, stooping over so as to keep the mouth of the deer head off the ground, as if grazing, would creep up on the lee side of the herd. He would also, so as to more closely imitate the action of a deer, occasionally jerk the head from side to side, as if nabbing flies.

Presently a buck from the herd, observing the suspicious stranger, would begin to stamp and snuff, and bridle with anger; or, possibly, shaking with excitement, would edge nearer, challenging the supposed intruder for a fight, browsing and approaching, or maneuvering for a position. The hunter, in the meantime, would keep up his own maneuvers until the victim was near, and then let fly the fatal arrow; though Labonte says that before the use of guns, the Indian himself, if he chanced to miss his mark, was sometimes so viciously attacked by the deer as to be badly gored or trampled, or possibly killed. Young Labonte always used a gun at this sport.

He recalls also seeing two grizzly bears on French Prairie, one of which was in connection with a hunting party one foggy morning. Grizzlies were not unknown in the Willamette Valley, though they were not abundant. The Chinook jargon name for the grizzly was eshayum, quite distinct from the name of the common black bear, itch-hoot. Both these words are evidently primitive Indian terms (S. B. Smith) and thus show that the grizzlies were a well recognized species in the Willamette Valley during the period of Indian occupation.

Labonte Jr. has recollections of earliest French Prairie which are very valuable, and give a new, or at least a clearer understanding of settlement here, than ever seems to have been published, and shows Chemaway on the Willamette River about twelve miles above Champoeg to have been the first nucleus of settlement. According to these recollections, which should of course be subjected to close examination before being used as the basis of a final conclusion, it was Joseph Gervais and the remnants of the Astor company, or Hunt's part of it, who were the original pioneers of French Prairie, and thus of Oregon. These were Joseph Gervais, Etienne Lucier, Louis Labonte, Wm. Cannon, Alexander Carson, (Alex. Essen) and Dubruy. Whether the fact that they had been with an American company made them any more independent and more disposed to settle for themselves, may be questioned; but at any rate, they formed a little company of comrades and became the first group of independent Oregon people.

Joseph Gervais was the first, and when the Labontes arrived in about 1831, he had been upon his place at Chemaway at least three years, and had made considerable improvements. Chemaway is situated on the bank of the Willamette River at a somewhat abrupt point over the water and became afterwards the location of Jason Lee, and the Methodist Mission. It is not to be confounded with Chemawa, the location of the United States Indian Training School on the line of the Southern Pacific Railroad,—though this is a mispronunciation of the old name, in which both a's are long, with a strong tendency toward long e, making the name Chemaewae.

Gervais had substantial buildings, and Labonte's description of his house and barn is very interesting. The house was about 18 × 24, on the ground, and was constructed of square hewed logs, of rather large size. There were two floors, one below and one above, both of which were laid with long planks or puncheons of white fir, and probably adzed off to a

proper level. The roof was made of poles as rafters, and the shingling was of carefully laid strips or sheets of ash bark, imbricated. Upon these were cross planks to hold them in place. There were three windows on the lower floor of about 30 × 36 inches in dimensions, and for lights were covered with fine thinly dressed deer skins. There was also a large fireplace, built of sticks tied together with buckskin thongs, and covered with a stiff plaster made of clay and grass. The barn was of good size, being about 40 × 50 feet on the ground, and was of the peculiar construction of a number of buildings on early French Prairie. There were posts set up at the corners and at the requisite intervals between, in which tenon grooves had been run by use of an auger and chisel, and into these were let white fir split planks about three inches thick to compose the walls. The roof was shingled in the same manner as the house, with pieces of ash bark. There was a young orchard upon the place of small apple trees obtained from Fort Vancouver.

At the time that the Labontes came to Chemaway, Etienne Lucier had not yet taken his own place, about three miles above Champoeg, at Chewewa, but was living, or camping, upon the place of Gervais, probably looking around the country and making arrangements for a permanent home. Lucier, therefore, was not the first settler upon French Prairie, but this honor belongs to Joseph Gervais, who must have gone there, according to Labonte's recollections, about 1828.

William Cannon was a millwright, being an American by birth, from Pennsylvania, and at the time the Labontes came to French Prairie, was at Vancouver, building the gristmill. He afterwards built the Champoeg gristmill, as stated by Willard H. Rees.

Dubruy settled subsequently about two and one-half miles south of Champoeg.

Alexander Carson (Alex Essen, as pronounced by Labonte), was a trapper, and spent much of his time in the Yamhill country. He seems to have been a very independent man, but finally lost his life at a certain butte on the North Yamhill River (still called Alec's Butte) by the Twhatie (Tualatin) Indians, probably with the simple object of possessing themselves of his rifle and trappings.

As to Champoeg, the historic point in Oregon history, this was originally a camping and council ground of the Indians. It was near the

north boundary of the Calapooyas, and here various tribes came to trade, to play games of chance and skill, and not infrequently to intermarry.

One great sport was diving. The water of the Willamette River off the bluff was very deep, and it became a great contest for the young men to see who could dive deepest and remain under water longest. Some of the bolder ones even not rising until the blood began to burst from their noses or mouths.

Labonte recalls with great vividness the wedding ceremonies which he often witnessed, and that were frequently celebrated here between contracting parties of the different tribes. It was quite an intricate ceremony. The tribe of the groom would assemble on one side and that of the bride on the other. The groom, placed in the forefront of his people, was dressed in his best, and seated upon the ground. He was then approached by members of his own tribe, who began removing his outer garments, article by article. After this was done, members of the bride's tribe came and reclothed him with different garments and placed him in readiness to receive his wife. The bride, in the meantime, was placed in the forefront of her people, but was covered entirely, face and all, with a blanket. When ready to be presented, she was carried by women of her tribe, and brought within a short distance of the groom, but here her bearers halted to rest. Then, probably indicating the desire of both peoples that the ceremony should proceed, and that all were friendly, a shout or hallo was raised by all parties, which is given as follows: "Awatch-a-he-lay-ee. Awatch-a-he-lay-ee." After which she was taken the rest of the way and presented, while the same cry of applause and approbation was again raised.

A bride was purchased, and the presents were numerous and valuable. In case that the groom and bride were descendants of chiefs, presents were made between the whole tribes. These presents were of all sorts, and consisted of horses (cuiton), blankets (passissie), guns (mosket), slaves (eliatie), haiqua shells, or, as the small haiqua shells were called, cope-cope, which is a kind of turritella, kettles (moos-moos), tobacco (ekainoos), powder (poolallie), bullets (kah-lai-ton), knives (eop-taths), or other articles.

The name Champoeg, says Labonte, is not derived from Le Campment Sable, the French name, but is purely Indian. "Cham," the hard *ch*, not *sh*, is

of the same character as the universal *Che* prefix of the Calapooyas; as Chehalem, Chewewa, Chemaway, Chamhokuc, or Chemeketa; and the latter part, "poeg," or poek, was for a certain plant or root found there by the Indians, and called po-wet-sie. That this is the true derivation, and it is not from the French term, meaning the sandy camp, is evidenced by its similarity to the other Indian names just given above.

III. AT SCAPPOOSE.

When young Labonte was about sixteen, and after spending about two years at Chemaway, the family was employed by Thomas McKay to take charge of his farm on Scappoose Plains, across the Willamette Slough, or Multnomah, from Sauvie's Island—McKay being one of the most energetic and intrepid captains of the Hudson's Bay Company, and being at that time detailed for special service in the Snake River country, where competition with American companies was setting in with much vigor. On this farm the Labontes raised wheat, oats, peas, potatoes, and various garden products, and had cattle and hogs, but no sheep. On the farm with the Labontes there was a Frenchman named Antoine Plasier.

It was during this period that Wyeth—whom Labonte recalls as White, from a mixture of the English aspirate and the French non-aspiration of th—made his second visit to the Columbia. It was, however, more with the trim brig *May Dacre* that the lad had to do. He remembers that he was at that time just as tall as a musket, which he indicates would reach about to his chin as a man. On this craft, which lay anchored in the stream not far from the farm, he was often invited to go visiting, particularly Sundays, and was well treated by the sailors and Captain Lambert. He remembers once being asked by the captain whether he could climb a mast, and he immediately proceeded to show that he could, and ascended to the topmast on the bare pole, climbing hand over hand. It happened to be a windy day, and the brig was rolling somewhat in the swell, and when the boy looked down from his lofty elevation, he was made almost dizzy by observing how small the vessel below him looked in the wide stream. But upon reaching deck again, he was complimented by both sailors and captain as being made of stuff fit for a sailor.

Indeed, Lambert seems to have been very well pleased with him, and offered him a passage on his ship to Boston, and a return, either by land or sea, and to this his parents were almost persuaded to give their consent, but at the last moment could not quite bring themselves to do this. Sometimes he was invited by the captain to take dinner, and amused the officers by his sturdy refusal to take anything to drink—perhaps as much from suspicion as from set conviction—though the better class of men on the Columbia at that time greatly deprecated the use of intoxicants and were largely temperate, and the boy very likely had imbibed these ideas.

He remembers Lambert as large and powerful, and full bodied; of dark hair and complexion, and "a good man." Nathaniel Wyeth, whom he also saw, was florid, light-haired and blue-eyed, but also large, and perhaps even finer looking than Lambert.

Game at Scappoose and on the ponds of Sauvie's Island was very abundant, consisting of deer, elk and bear, and panthers and wildcats; and beaver were still plentiful; but the waterfowl of the most magnificent kind, at their season of passage, and, indeed, during much of the year, almost forbade the hunter to sleep. Labonte remembers one winter season in particular when there was a snowfall of about sixteen inches, and in the early morning he went forth to hunt swan. These splendid birds of the white species, like the innumerable ducks and geese, assembled at the island ponds to feast upon the abundant wapatoes. On this particular morning the youth soon discovered his flock of swans upon the surface of a shallow lake, eating the roots, and being such an immense flock that they were not to be disturbed even by the immediate presence of the hunter. Then, disrobing to his shoulders,—for the water was too deep to reach the flock otherwise,—he simply waded in, bringing down two or three birds to a shot, until he soon had as many as he could carry. Indeed, the lake was so covered by the flock as almost to conceal the water. However, upon reaching home he was rather chided for his performance by his father, who told him that by such cold bathing he would be likely to get the "rheumatism," which was his first acquaintance with that term.

IV. SPOKANE INDIANS AND INDIAN MYTHS.

When taken to Spokane Falls, Labonte was a small boy of about six years. His parents made their residence there from about 1824 to 1827.

He was much with the Indians, and learned their language like a native, and was often present at their religious services, and heard them tell their myths. One of their meetings he describes as follows: At the lodge of the greatest chief there was a picture, from whom obtained he does not know, but in all probability from some member of the Hudson's Bay Company. When worship was held, this picture was spread out on the floor, and, kneeling before it, the chief began a prayer to the Great Spirit, or the Hyas Ilmihum, who was addressed also by the name of Creator; the expression "Quilen-tsatmen," meaning Creator, or, more exactly, "He made us." The prayer was a petition to be made pleasing to God, to be kept under His care, to be taken to Him at last, and to be kept from the "Black fellow." After the chief had finished, others also followed, kneeling down and uttering a shorter petition until all at last took their place and followed along in an orderly manner. Those who had any offerings left them before the picture. Then they began a hymn or chant, and after that was finished, all joined in a dance.

Labonte recollects the names of some the Spokane chiefs: Ilmicum Spokaneee, or the chief of the moon; Ilmicum Takullhalth, the chief of the day; and Kahwakim, a broken shoulder. He also recollects a Colville chief, whose name was Snohomich, a white-headed old man.

The Spokane Indians had the legends of the coyote, or Tallapus, but his name was Sincheleep. In his breast he carried certain knowing creatures, which were his spirits, or wits, and when he wished to take council with himself, he would call them forth. They gave him the answers he needed, and then went back into his breast. Sincheleep, the coyote, was quite different from the fox, Whawhaoolee, though the fox was also a knowing beast. The big gray wolf was Cheaitsin; the grizzly bear, Tsimhiatsin, and the black bear, N'salmbe.

A story of Tallapus, or Sincheleep, that Labonte remembers was the same in substance as that of Tallapus and the cedar tree; although Spokane is almost a thousand miles from the region of the story of Tallapus. This illustrates to what a wide extent the folklore of the primitive Indians extended. Sincheleep was once traveling and was not entirely certain how

he should obtain his meals upon the way. However, in order to look as well as possible he decided to dress up nicely; to comb his hair, and paint his face becomingly. In the course of time he was met by two women who carried baskets in which they had some camas bread and other Indian dainties. He came forward and addressed them and said very pleasantly, "Sit down, sisters; sit down. I will sing to you and tell you stories." So they sat down while he sang and told them stories, and they enjoyed his society so much that when at length he remarked casually, "What have you in your baskets, sisters?" they very kindly opened their stores and treated him; which, of course, he enjoyed, and began at once to contrive for another treat. He bade them good-bye and went on, but when out of sight took a circle about and coming to a stream washed himself and painted another way, and also combed his hair differently, and met the two women again. He addressed them as before, saying, "Sit down, sisters; sit down, and I will sing and tell you stories." This they did, and were again so charmed that they opened their baskets and treated him as before. He then went on, but circled about again so as to meet them once more, being now combed and painted still differently. He sang and told stories and was again treated. But about the fifth or sixth time that this happened, the women began to suspect that the cunning creature was no other than Tallapus, and when he saw that he was discovered, he bade them a final good-bye, and went off to the wooded hills. Then began the story of the tree, which as told by Labonte, runs as follows: "He saw a tree with a crotched root, leading to a hollow within, and thinking this a fine resting place, went inside. He then asked the tree to close, and it did so obediently. This was some time along in the fall. After it was closed, he asked it to open, and it did this also. Then he asked it to close and it was closed. It opened or shut whenever he asked it to, but by and by when he asked it to open, it would not. Then he was very sorry and sat down inside the tree and cried. But he was compelled to remain there all winter."

Some time along in the early spring the birds came at his request to peck him out; but the first, the second, and many others that tried only broke their bills and were unable to make even a small hole, until this was done by a woodpecker; and through the opening Tallapus was able to gaze abroad and see the blooming flowers and the green grass.

But still he could not go through the opening, and finally concluded that the only way was to take himself to pieces and put himself out, piece by piece. His eyes were the first parts that he thus placed on the outside, but they were seized upon by a raven who carried them away. Finally the various sections of his body were all out and collected and put together properly, except that his eyes were gone and he was blind. But he smelled the scent of flowers and felt around until he found some of the flowers, which he placed in each eye. Then, feeling his way along laboriously, and staring about as if seeing everything, was at length directed by smelling smoke. Following this odor, he was led to a lodge where there were some women. By these his misfortune was ridiculed, and they engaged in laughter as he felt for the door; but he answered, "I am only measuring your house." He was moving around in the meantime and trying to find a place to sit down, which only increased their merriment; but he answered, "I see; I see; but I am only measuring the ground."

Then one of the women said, "Can you indeed see?"

Then he, staring off, replied, "Do you see that fire?"

"Where?" they asked.

"Far off," he answered, and described the distance as far away, beyond the limit of their vision.

"No," they confessed, "that is too far for us."

Then he answered, "I can see what you do not." By which one of the women was so impressed with the strength of his sight that she immediately wished to swap eyes, and he promptly accepted the proposition; as a result of which he could see even better than before, while she became blind. He then transformed her, for her folly, into a snail, which even to this day feels its way along the ground.

The following are some of the Tallapus stories, which Labonte remembers, found in the Willamette Valley:

According to the Calapooyas, who occupied this valley from near the Pudding River southward, Tallapus came originally from the Rocky Mountain country and went down the Columbia River, and thence southward along the coast and finally over the coast mountains into the

Willamette Valley; though his exact birthplace or origin is still a matter of doubt.

Arriving by the Willamette River, he found the tribes of that region in very unhappy circumstances; chiefly from the absence of any good place for catching fish, and also, owing to the depredations of certain gigantic skookums. In order to remedy the first evil, he determined to make a fall in the Willamette River where the salmon would collect and be easily captured. He found a place at the mouth of Pudding River, the Indian name of which is Hanteuc, and here he began erecting the barrier, but finding it not suitable, went further down, leaving only a small riffle. At Rock Island, he began in earnest, but upon further investigation found this also unsuitable, and leaving here a strong rapid, went down to the present site of the Willamette Falls, where he completed his task and made the magnificent cataract which is not only a scene of beauty, but a model fishing place.

After having provided the fishery, he decided to invent a remarkable trap which would obviate the labor of fishing. He succeeded and produced a marvelous machine which not only caught the fish, but also had the power to talk, and would cry out, "Noseepsk, noseepsk," when it was full.

Determining to try his invention for himself, Tallapus set the trap and went immediately to his camping place to build a fire in order to cook the fish. But scarcely had he begun when the trap cried out, "Noseepsk! Noseepsk!" and going down he found it full of fish sure enough. Then, returning, he began once more to prepare his fire; but the trap called out again, "Noseepsk! Noseepsk!" He obeyed its summons and found it full, and went back once more to start his fire; but the trap called for him again, and now, out of patience with its promptness, he said to it crossly, "Wait until I build a fire, and do not keep calling for me forever." But by this sternness the trap was so much offended that it instantly ceased to work, and the wonderful invention was never used by men, who were obliged as before to catch the salmon with spears or nets.

THE STORY OF THE SKOOKUM'S TONGUE.

However, in the course of time the Indians became very prosperous, and a large village was built on the west side of the river. But while they were thus prospering, a gigantic skookum that lived upon the Tualatin River

began to commit fearful depredations. His abode was on a little flat about two miles from the Indian village, but so long was his tongue that he was in the habit of reaching it forth and catching the people as he chose. By this, of course, the village was almost depopulated, and when, after a time, Tallapus returned, he was very angry to see that the benefits of his fishery had gone, not to the people, but to the wicked skookum. He therefore went forth to the monster and cried out to it, "O, wicked skookum; long enough have you been eating these people." And with one blow of his tomahawk cut off the offending tongue, and buried it under the rocks upon the west side of the falls; after which the people flourished. But so persistent is Indian superstition that even yet some of the old Indians say that when the canal was cut around the falls, that this was nothing more than laying bare the channel made for the tongue of the skookum.

THE SKOOKUM AND THE WONDERFUL BOY.

On the east side of the falls at about the site of Oregon City the Indians also made a large village, being nourished by the fishery, and had among them a great chief. But from the mountains on the east there came a frightful skookum, who destroyed the entire village and even the old chieftain and all the people, except the chief's wife and her unborn son.

The woman desiring that her son should be great and strong, took him after his birth to the various streams or lakes that were haunted by Tomaniwus spirits, and bathed him in the waters. From these he absorbed the strength of the water and of the spirits, and in consequence, grew prodigiously. In the course of time, he returned to the old village where he found his mother, and looking about the lodge, he began to ask her what were the various articles that he saw. She replied: "This is the spear with which your father used to catch the salmon; and this is the tomahawk with which he used to kill his enemies or to cleave wood; and this is the bow with which he used to shoot arrows." Taking the tomahawk in his hand, the boy went out to look abroad but was almost immediately met by the skookum returning. Thereupon driving his tomahawk into a gnarly log of wood so as to make a crack, he cried out to the giant, "If you are so strong, hold this crack open while I take another stroke;" and into the opening the witless skookum placed his fingers, but the tomahawk being instantly withdrawn and the crack closing, was held fast, after which he was easily

killed by the boy. Then taking his father's bow, the youngster went forth and shot an arrow into the sky, calling out at the same time, "As the arrow falls let those who died come to life;" and this also was done. Scarcely had the arrow fallen before the old chief and all his people were seen coming up the river in their canoes; and landing at the rocks, they began fishing as if nothing had happened. The wonderful boy being rejoiced to see his father, whom he had never looked upon before, went down among the fishermen; but when he was seen by the old chief, was accosted rudely with the question "Who are you? I am chief here." And the old chief not knowing his son, accompanied his rough language with an even rougher blow.

By this the wonderful boy was greatly affected, and thinking that he could benefit his tribe no more, retired to the rocks above the falls, and began weeping; and, indeed, wept so copiously that his tears falling on each side of the falls wore two great holes in the solid rock, which may be seen there to this day. Finally deciding that he would no longer live as a man, the boy changed himself into a fish in order that he might rest in the quiet waters. But he was disturbed by the roaring of the river to such an extent that he swam upward as far as the Tualatin. But neither here could he rest on account of the roaring of the water. He proceeded thence to the mouth of the Molalla, and of the Pudding River, and of the Yamhill, successively, but had no resting place, until finally he reached the clear Santiam. Here he found what he desired, and went to sleep in a still pool; but being discovered by Tallapus, was changed into a rock, having the form of a salmon. And this accounts, say the Indians, for the fact that no salmon that ascend the falls at Oregon City ever turn aside into any of the streams until they reach the Santiam; but there seeing the rock, they take a circle and swim near, and then saluting it with a flip of their tail proceed up the crystal clear river until they reach the pebbly bars suitable for their spawning grounds.

THE HAUNTED LAKE.

In addition to the above, Labonte tells an Indian story of a haunted lake in the hills to the northward of Newburg. The waters of this lake are exceedingly deep and still, and it has the name of the skookum water.

Long ago, said the Indians, there was one man who, although he knew that this was a tomaniwus water, determined recklessly to reach it in his canoe, and disturb its placid surface with the strokes of his paddle. Making his way thither, in his little craft in which he also had his dog as his sole companion, he at length came to the shadowy lake. He directed his strokes toward the center, which he had scarcely reached before the water grew darker and became greatly disturbed. Finally, it began revolving round and round, and the man with his canoe and dog were whirled along in the stream until a vortex was developed and opened, into which all sank. Then the lake was pacified, and again became serene. But even at the present time, upon a foggy morning, if one gazes over the rocks upon Skookum Lake, he will see a white object whirling round and round on the surface of the water, and may, perhaps, hear whines and cries; this is the spirit of the dog, which thus returns.

DR. ELLIOTT COUES.

The untimely passing of Dr. Elliott Coues, scientist and historian, has deprived the Historical Society of Oregon of the pleasure of making acknowledgments to the living man of its appreciation of the invaluable work he has done, touching the history of the Northwest, and particularly of Oregon, in the latter part of the eighteenth and early part of the nineteenth centuries. Doctor Coues' personal bias was towards the natural sciences, in which he was distinguished, both as to the quantity and quality of the matter produced, on ornithology, mammalogy, herpetology, comparative anatomy, natural philosophy, psychical research, etc.^{[21](#)} Incidentally, through his researches in natural history, which led him to explore wilderness regions, he became a historian of more than ordinary value, for he was never satisfied with his work until he had gone to the very bottom of his subject. The books and manuscripts which he edited became original histories in his hands, from his almost incredible industry in bringing to light facts to verify or disprove the author's statements. With all the care of a genealogist he followed a clue leading to the identity of the persons mentioned in the writings before him, or the places named. His insight into, and industry in exploiting the fading records of the past was extraordinary, amounting to genius. His editorial revision of the journal of Lewis and Clark, has added immensely to the value of that work, so interesting to Oregonians, and should revive our zeal for the study of early history.^{[22](#)}

But of all the work done by Doctor Coues none has interested me more than his abridgment of and notes upon the journal of Alexander Henry and David Thompson, two of the leaders of the Northwest Fur Company, almost a century ago, extending over a period of fourteen years, and covering the ground from Lake Superior to the mouth of the Columbia, whose ruthless waters at the last swallowed up Henry, May 22, 1814.

This journal was at Astoria at that date, and we hear in it of the carpenter making an oak chest for it, or "for my papers," as Henry writes it. Covering so long a period, it was very voluminous. It was carried to Hudson's Bay, but perhaps because of this, and because its author was dead,

it was never made public. When Doctor Coues found it the paper was much worn, and the writing in places illegible; but that did not deter him from entering upon the task of preparing it for publication. Not only is the journal itself of great interest, but the notes and explanations attached to almost every page are wonderfully complete. The enormous bulk of Henry's matter is reduced by its editor, together with his notes, to 916 pages, in two volumes, without the sacrifice of facts, giving us a clear account of the country's history not obtainable in any, or all other, writers.

A little more personal notice may not be out of place here as significant of the man. In January, 1898, I received a letter from Doctor Coues desiring me to send him a copy of the *River of the West*, "with any erroneous passages it may possibly contain corrected in your (my) own hand," and asking me to give him information on some subjects which he named, and among them, the origin of the name "Lawyer," as applied to a Nez Perce chief; also asking the meaning of the word "Lo-Lo," whether it was a personal name, etc.²³ He understood that an author is pretty sure to find "erroneous passages" in books that an honest writer must be willing to correct; besides, he wished to avoid quoting others' errors.

From that date to his death we were in frequent correspondence, and when the Oregon Historical Society was formed, he was made acquainted with the fact, on which he expressed a desire to be made a member. It is not too late to thus honor the man who has given the state a chapter of its history hitherto unrevealed.

Mrs. Coues, in a letter replying to one of mine, says: "His home life and ways would hardly interest the public, they were so simple and quiet, with a wonderful appreciation of any little thing that was done for his comfort. I think the one characteristic that stands out the most prominently was, 'Now, I have finished that piece of writing. I have begun another.'" To finish a work was not an occasion for rest, but to put forth fresh energy for other effort. Francis P. Harper, his publisher, says: "He had a capacity for work that was almost beyond belief, and was always prompt and business-like. He was a firm and trustworthy friend, and an ideal author for a publisher to have business relations with." His printer (in the Osprey office, Washington), adds: "I have had years of experience with various authors and editors, and can truthfully say his genial friendship and appreciation stands out markedly beyond all others." "He never neglected a letter," says

Mrs. Coues, "although from a total stranger, asking for assistance. He gave it if he could, most generously, and if unable, gave a courteous answer, and a reason. I myself have counted sixty letters he had written in about six hours—not merely a reply of a few lines. His one great desire in life was a search after truth, and kept his mind receptive to all that could give him a clue."

Doctor Coues spent the summer of 1899 in New Mexico, making researches in his usual energetic fashion—"forgetful of his fifty-seven years" as he wrote me after returning home ill. It was not years, however, that bore so heavily upon him; but the crowding of five years' work into one. This it was that deprived the world of his incomparable services in the very fullness of his intellectual powers.

Doctor Coues was the son of Samuel Elliott Coues and Charlotte Haven Ladd Coues, born at Portsmouth, New Hampshire, September 9, 1842. His literary tastes were inherited from his father, who was a writer on scientific subjects. He was educated at Ganazaga College and Columbia University, Washington, D. C., from which he graduated in 1861. He continued to reside at the capital, and his life was spent in contact with all that was strongest and best in a nation which his talents helped to make conspicuous in the fields of science and literature. His death occurred at Johns Hopkin's Hospital, Baltimore, December 25, 1899. The State of Oregon cannot fail to place his name high among the fathers of her early history.

FRANCES F. VICTOR.

[21](#) Principal Works: "Key to North American Birds," '72; "Field Ornithology," '74; "Birds of the Northwest," '74; "Fur-Bearing Animals," '77; "Monographs of North America Rodentia (with Allen)," '77; "Birds of the Colorado Valley," '78; "Ornithological Bibliography," '78-'80; "New England Bird Life (with Stearns)," '81; "Check List and Dictionary of North American Birds," '82; "Avifauna Columbiana (with Prentiss)," '83; "Biogen, a Speculation on the Origin and Nature of Life," '84; "New Key to North American Birds," '84; "The Dæmon of Darwin," '84; "Code of Nomenclature and Check List of North American Birds (with Allen, Ridgway, Brewster,

and Henshaw)," '86; "A Woman in the Case," '87; "Neuro-Myology (with Shute)," '87; "Signs of the Times," '88. Also author of several hundred monographs and minor papers in scientific periodicals, and editor or associate editor for some years of the Bulletin of the United States Geological Survey, Bulletin of the Nuttall Ornithological Club, American Naturalist, American Journal of Otology, Encyclopædia Americana, Standard Natural History, The Auk, The Biogen Series, Die Sphinx (Liepsig), The Century Dictionary of the English Language (in General Biology, Comparative Anatomy and all departments of Zoology), The Travels of Lewis and Clark, &c.

[22](#) See the "American Explorers Series," published by Francis P. Harper, for Coues' work in this line. His last was "On the Trail of a Spanish Pioneer."

[23](#) I have since learned that Lolo is not an Indian word, but is the Indian pronunciation of the word Lawrence—the letter *r* not being sounded in the native tongue. A mingling of the French sound of the other letters in the word produces the word as pronounced by the Indians.

DOCUMENT.

**THE ORIGINAL OF THE FOLLOWING DOCUMENT IS IN THE POSSESSION OF
MRS. FRANCES FULLER VICTOR, PORTLAND, OREGON. IT WAS SECURED
FROM MR. HARVEY, A SON-IN-LAW OF DOCTOR McLOUGHLIN,
AND SEEMS TO BE A DEFENCE BY DOCTOR McLOUGHLIN
OF HIMSELF, ADDRESSED TO PARTIES IN LONDON.**

The first Americans since 1814 who crossed to the west side of the Rocky Mountains was (at least to our knowledge) Mr. Jedidiah Smith with five trappers, who, having met some of the Hudson's Bay Company on the headwaters of Snake River came with them to the Hudson's Bay post at the Flat Heads, where they passed the winter.

In 1825 he returned to join his people, and in 1826 he brought a large party of his countrymen to hunt in the Snake country, where they have been ever since. In 1826 and up to 1828, there were constantly five or six hundred. But now, that beaver are scarce, there are only about fifty. In 1827, Mr. Smith pushed his trapping parties to the Bay of San Francisco, in California, and, in endeavoring to make his way here from California in 1828, fifteen of his men were murdered by the Umpqua Indians when he with only three of his men reached Vancouver from whence, spring 1829, he proceeded to join his countrymen in the Snake country.

The first American vessel that entered the Columbia River to trade since 1814 was the Oahee, Captain Dominus, in February, 1829. The Convoy, Captain Thompson, came a while after. These two vessels belonged to the same party, a merchant in Boston. In summer, they went up to the coast. Returned in the fall. The Oahee wintered in the Columbia River, but the Convoy proceeded to Oahoo. Returned spring 1830, and in the summer both vessels left and never returned.

In 1832 a Mr. Wyeth came across by land from Boston with eleven men, with the intention of establishing a salmon fishery and expected to have met a vessel which he had sent from Boston, but he learned afterwards she had been wrecked on an island in the Pacific, and the nonarrival of his

vessel obliged Mr. Wyeth to return to the United States, but his men remained in the Wallamette.

In 1834 Mr. Wyeth returned with a large number of men whom he left in the Snake Country to trap beaver, where he built the present Fort Hall, and brought about twenty men with him to prosecute the object of his first voyage in 1832, for which purpose he had despatched the May Dacre, Captain Lambert, from Boston in 1833, and which entered the river a few days after Mr. Wyeth arrived at Vancouver, who built on Wapattoo Island. Collected in 1835 about a half cargo of salmon when the May Dacre sailed in 1835, and in 1836 Mr. Wyeth broke up his establishment on Wapattoo Island. Returned to the states, offered the remains of his property in the country for sale to the Directors of the Hudson's Bay Company in London, but they referred him to their officers in the country at Vancouver, who bought Mr. Wyeth's property and his establishment of Fort Hall in 1837 from Mr. Wyeth's agent, and he left in one of the Hudson's Bay Company's vessels for Oahoo in 1838. But his labouring men dispersed in the country. The Rev. Jason and Daniel Lee of the Methodist Episcopal Church, with three laymen came overland from the states in company with Mr. Wyeth in 1834. They brought horses and cattle with them, but their supplies came by sea in the May Dacre. Messrs. Lee left the states with the intention of settling in the Flat Head Country as missionaries to those Indians but changed their minds and settled in the Wallamette Country, and as they had left their cattle at Walla Walla and they were rather weak after their long journey, they asked and obtained the loan of cattle from me.

In 1834 one Kelley came from Boston by way of California, accompanied by Ewing Young and eight English and American sailors. Kelley left the states with a party intending to come here by way of Mexico, but the party broke up on the way and Kelley alone reached California, and with one man overtook our California trappers on their return about two hundred miles from San Francisco, and Young, a few days after, with the rest of them; but as Gen. Figueroa, Governor of California, had written me that Ewing Young and Kelley had stolen horses from the settlers of that place I would have no dealings with them, and told them my reasons. Young maintained he stole no horses, but admitted the others had. I told him that might be the case, but as the charge was made I could have no dealings with him till he cleared it up. But he maintained to his countrymen and they

believed it, that as he was a leader among them, I acted as I did from a desire to oppose American interests. I treated all of the party in the same manner as Young, except Kelley, who was very sick. Out of humanity I placed him in a house, attended on him and had his victuals sent him at every meal till he left in 1836, when I gave him a passage to Oahoo. On his return to the states, he published a narrative of his voyage in which, instead of being grateful for the kindness shown him, he abased me and falsely stated I had been so alarmed with the dread that he would destroy the Hudson's Bay Company's trade, that I had kept a constant watch over him, and which was published in the Report of the United States Congress. In 1835 five English and American deserters having lost two of their companions murdered by Indians made their way from California to the Wallamette. The same year the Revd. Samuel Parker of the Presbyterian Church, was sent by the Missionary Society of Boston to examine and find proper places to establish missions. He came with the American Fur-Traders to their rendezvous in the Snake Country, from whence he sent his companion, Dr. Whitman, to the states for missionaries and came alone to Vancouver. The Rev. Mr. Parker appears to me to be a man of piety and zeal, but is very unpopular with the other protestant missionaries in the country, for which I see no cause except that acting differently from them, he has published to the world the manner some of their countrymen act toward Indians, and the very different manner we treat them as may be seen by reference to his work. He left in 1836 by way of Oahoo.

In 1836 Dr. Whitman with his wife, and accompanied by the Rev. Mr. Spalding and his wife, and laymen, returned to the country. Dr. Whitman established himself in the vicinity of Walla Walla. The Rev. Mr. Spalding in the Nes Perces Country. In the fall Mr. Slocum [Slacum] came in a vessel from Oahoo, which he hired for the purpose. On arriving, he pretended that he was a private gentleman, and that he came to meet Messrs. Murray and companions who had left the states to visit the country. But this did not deceive me, as I perceived who he was and his object, and by his report of his mission published in the proceedings of the Congress of the United States, I found my surmises were correct. This year the people in the Wallamette formed a party and went by sea with Mr. Slacum to California for cattle, and returned in 1837 with 250 head. In 1836 the Rev. Mr. Leslie and family, accompanied by the Rev. Mr. Perkins and another single [man], and a single woman, came by sea to reinforce the Methodist Mission. In

1837 a bachelor and five single women came by sea to reinforce the Methodist Mission, and three Presbyterian ministers came across land with their families, while their supplies came by sea. Two of these missionaries settled in the vicinity of Colville, the other in the Nes Perces Country. In 1838 two Roman Catholic Missionaries came from Canada. This year the Rev. Mr. Griffin of the Presbyterian Church, with his wife, came across land from the states by way of the Snake Country. There came with him also a layman of the name of Munger, and his wife. They came on what they called the self supporting system, that is, they expected the Indians would work to support them in return for their teachings, but their plan failed. Mr. Griffin is now settled in the Wallamette as a farmer, and Mr. Munger joined the Methodist Mission, where he became deranged, threw himself on a large fire, saying it would not hurt him, but was so seriously burned that in a few days he died. In 1839 a party left the State of Illinois, headed by Mr. Farnham, with the intention of exploring the country and reporting to their countrymen who had sent them. But four only reached this place. Three remained, but Mr. Farnham returned to the states by sea and published an account of his travels. Messrs. Geiger and Johnson came this year, sent as they said by people in the states to examine the country and report to them. Johnson left by sea and never returned. Geiger went as far as California and returned here by land. He is settled in the Wallamette. In 1840, the Rev. Mr. Clarke of the Presbyterian Church with his wife, and two laymen with their wives, came across land on the self supporting system, but, as their predecessors, they failed and are now settled in the Wallamette. In 1840 the Rev. Mr. Jason Lee, who had gone in 1838 across land to the United States, returned by sea in the Lausanne, Capt. Spalding, with a reinforcement of fifty-two persons, ministers and laymen, men, women and children, for the Methodist Mission, and a large supply of goods with which the Methodist Mission opened a sale shop. In 1841 the American exploring squadron, under Capt. Wilkes, surveyed the Columbia River from the entrance to the Cascades, and sent a party across land from Puget Sound to Colville and Walla Walla, and another from Vancouver to California. At same time the Thomas Perkins, Capt. Varney, of Boston, entered Columbia River for the purpose of trade. She was the second vessel that came for that object since the May Dacre in 1834. The first was the Maryland in 1840, Capt. Couch, of Boston, who came to endeavor to establish a salmon fishery, but did not succeed. The Thomas Perkins had a quantity of liquor, and as this was an

article which, after a great deal of difficulty, we had been able to suppress in the trade, to prevent its being again introduced, I bought up Varney's goods and liquor, and it was still, spring 1846, in store at Vancouver. Spring 1842 the Americans invited the Canadians to unite with them and organize a temporary government, but the Canadians, apprehensive it might interfere with their allegiance, declined, and the project, which originated with the mission, failed. This spring the *Chenamus*, Capt. Couch, came from Boston. Capt. Couch opened a store at Oregon City and left a Mr. Wilson to do his business when he sailed in the fall for Boston. The ———, Capt. Chapman, of Boston, came also, who traded for a cargo of salmon, sailed in the fall, but never returned. In the spring the Rev. Father Desmit of the Society of Jesus came to Vancouver from the Flat Head Country where the year before he had established a mission from St. Louis. He came for supplies, which he purchased, and with which he returned to his mission. In August, the Rev. Messrs. Langlois and Bolduc [?] came by sea. The month of September 137 men, women and children arrived from the states. They came with their wagons to Fort Hall, and from thence packed their effects on horses and drove their cattle. They passed, without visiting Vancouver, from The Dalles to the Wallamette over the Cascades by the road which the Methodist Mission had opened to drive cattle from the Wallamette to that place. Dr. White who had formerly been a member of the Methodist Mission, but disagreeing with them had left them in 1840, came with these immigrants. He gave himself out, at a meeting which he called for the purpose, as being appointed Sub-Indian Agent by the American government for Oregon Territory. But of course the officers of the Hudson's Bay Company did not acknowledge his authority, and the immigrants brought the printed copy of a bill brought into the Senate of the United States by Dr. Linn, in which it was proposed to donate 640 acres of land to every white male inhabitant, the same to a male descendant of a white man, 320 to a wife, and 160 to a child under 18 years old. This year my difficulties began with the Methodist Mission, but as I have already given a full detail of it, I will not repeat it here. In 1843 the Americans again proposed to the Canadians to join and form a temporary government, but the Canadians declined for the same reason as before.

In the summer a number of the immigrants of last year, headed by Mr. Hastings, not being satisfied with the country, left for California. As they were destitute of means, I made them advances, which they were to pay to

the late Mr. Rae, at San Francisco, but few did so. But in the fall, 875 men, women, and children came from the states by the same route as those of last year, and brought 1,300 head of cattle. These came to The Dalles, on the Columbia River, with their wagons, drove their cattle over the Cascades by the same route as those of last year to the Wallamette, and when the road was blocked up by snow, along the north bank of the Columbia to Vancouver, where they crossed the river and proceeded to the Wallamette, and brought down their wives and children and property on rafts, in canoes which they hired from the Indians, and in boats belonging to the Hudson's Bay Company, lent them by me. Yet with the assistance I lent them, they still suffered a great deal of misery, and spent a great deal of time, and the last passed Vancouver only at Christmas, and if, as some years is the case, the Columbia had frozen on the beginning of December, these immigrants were so destitute of provisions, and so poorly clad, many of them would have perished.

The Rev. Father Deros, [Demers] of the Society of Jesus, came this year with two other fathers of the same society and three laymen and established a mission in Colville District. Lieut. Fremont, of the United States service, came with a party to examine the country. After purchasing supplies from the Hudson's Bay Company, he rejoined his party at The Dalles, and proceeded across land to California.

In 1844 the immigrants amounted to 1,475 men, women, and children. They came by the same route, and were assisted by me with the loan of boats, as their predecessors of last year.

The Americans applied this year again to the Canadians in the Wallamette (who were about settlers) to join them and form a temporary government, to which they acceded, as they saw from the influx of immigrants it was absolutely necessary to do so to maintain peace and order in the country. We had the pleasure to see her Majesty's ship, *Modeste*, Capt. Baillie. She anchored opposite Vancouver. The Belgian brig, *Indefatigable*, also anchored there. She was the only vessel that hitherto came under that flag, and brought the Rev. Father Desmit, with four fathers of the Society of Jesus, and five Belgian nuns of the Society of Sisters of our Lady. The fathers came to reinforce their mission in the interior in the Flat Head Country, and to establish others, and the nuns to build a convent and open a school for young females in the Wallamette. Spring, 1845, an

American of the name of Williamson built a hut half a mile from Vancouver, on a piece of ground occupied by the Hudson's Bay Company. As soon as I was informed of it, I ordered the hut to be pulled down. A few days after, Williamson returned with a surveyor to survey the place, and finding his hut pulled down, and on inquiring, found it was pulled down by my orders, he called on me and asked the reason of my doing so. I told him it was because it was built on premises occupied by the Hudson's Bay Company, who were carrying on business in the country under a license from the British Government according to a treaty between the British and American Governments, which implies a right to occupy as much ground as they require for their business. But this was disputed, and he said he would persist and build. One of his companions went so far as to say if he was disturbed, he would burn the finest building in Oregon. Not wishing to enter into an altercation with this fellow, I told him in the presence of Chief Factor Douglas, and several of the Hudson's Bay Company's officers, and several Americans, and of Dr. White, who happened to be present at the time, that if he persisted in building, he would place me under the disagreeable necessity of using force to prevent him. He went away saying he would build. Although none of the Hudson's Bay Company's people, or any from the north side of the Columbia, had joined the organization, yet as Williamson was an American citizen, as a matter of courtesy to them, the accompanying letter of the 11th of March was addressed to the members of the Executive Committee of Oregon Organization with an address to the people, which on receipt was to be posted up for public perusal in Oregon City.

I also addressed them on the 12th, informing them that Williamson had desisted from his design of building on the premises in question.

In the summer a meeting of the people in the Wallamette was called in which the organization was new-modeled, and a clause put in by which it was provided that no man could be called to do any act contrary to his allegiance. It struck me this was done to enable us to join the organization and I mentioned this to my colleague Chief Factor Douglas, who thought, as I did, that in our present situation and the state of the country it would be advisable to do so, and I was not surprised to find a few days after on my visit to Oregon City that my surmises were correct, as the originator of the clause who was a member of the legislature then in session, called on me

and proposed to me to enter the organization on the part of the Hudson's Bay Company. After conversing on the subject and being aware the organization could afford assistance to none but its own members, I told him I would proceed to Vancouver, consult with my colleague, Chief Factor Douglas, and the other officers of the Hudson's Bay Company at that place, which I did, and Chief Factor Douglas coincided with me in the expediency of our doing so. I returned to Oregon City and on the legislature writing me a letter inviting me to join the organization on the part of the Hudson's Bay Company, in a written reply I informed them I did so; and on my way back to Vancouver, I was informed of the arrival of Chief Factor Ogden with dispatches from Sir George Simpson, Governor in Chief of Rupert's Land, in which I was happy to see that my proceeding in the case of Williamson had been approved. I have stated that Chief Factor Douglas coincided in opinion with me that in our situation, and in the present state of the country, it was evident for us (since none of us could be called to do any act contrary to our allegiance), to join the organization, as it resolved itself by this clause merely into an association of the people of the country to maintain peace and order among themselves, and in the present state it was not only necessary, but absolutely our duty, as in 1843, seeing the large number of immigrants of that season, and seeing from the public papers it was expected the numbers would be greater next year, and as they came from that part of the United States most hostile in feeling to British interest which was greatly excited by the perusal of Irving's Astoria. Kelley and Spalding's letters, several copies of which were among them, in which our conduct and proceedings were represented in the blackest and falsest colors, had worked so much on the minds of these immigrants that I found out they supposed we would have set the Indians on them, and that they had frequently talked among themselves that they ought to take Vancouver. They now knew these reports were false, but as prejudice takes a strong hold of people's minds, and of which others might avail themselves to form a party to make an attack on the Hudson's Bay Company's property—of which it may be said they were encouraged by the public papers stating that British subjects ought not to be allowed to be in the country, by the expectation held out by Linn's bill that every male above eighteen years of age would have a donation 640 acres of land, a wife 320, and all under 18 would have 160 acres in any part of the country—I wrote, fall 1843, to the Directors of the Hudson's Bay Company that it was necessary to get protection from the

government for the security of the Hudson Bay Company's property, and to which in June 1845 I received their answer stating that in the present state of affairs the company could not obtain protection from the government, and that I must protect it the best way I could, and as I had sent an account of Williamson's attempt to build on the premises of the Hudson's Bay Company, and of my proceedings on the occasion to her Majesty's Consul, Gen. Millar, at Oahoo, calling on him for protection for the Hudson's Bay Company's property, and to which he did not even reply, though he could have done so by the vessel which conveyed my letter. Therefore,—[seeing our situation, and that an incendiary in the dry weather in the summer and fall might easily destroy Vancouver and fly to the Wallamette where we could not touch him. Indeed at that very time, there was a man at Vancouver on his way with Dr. White to the states whom we knew had repeatedly said among his countrymen that his only object for coming to this country was to try a change of air for the benefit of his health, and to burn Vancouver, and I heard afterwards on his way back he had expressed his great regret at not having perpetrated his atrocious intention, and wanted to return from Fort Hall to endeavor to carry it into effect, but his countrymen and Dr. White persuaded him to continue his journey to the states with them; and there are plenty such characters in the country. One Chapman got up at a Methodist Camp Meeting and confessed publicly that he had belonged to a celebrated band of robbers in the State of Arkansas headed by the notorious — whom the United States Government had a great deal of trouble to catch and break up his band, and Chapman declared there were several of his former associates in this country, and if they reformed he would not expose them, but if they persisted in their former evil course, he certainly would. Even in 1844 a man agreed at this place to erect a building on the opposite side of the river. After it was erected, they differed about the payment. It was referred to arbitration, and the builder lost his case. A few days after, the building was burnt in the night, and though every person about the place is convinced who did it, yet there is no evidence to convict, and if there was, it would afford no indemnification to the owner of the property that was destroyed. I also had been informed that an American had proposed to form a party to take Vancouver by surprise. To deprive evil-doers of a place of refuge, as the organization could only assist its own members]—I considered it our duty to join the organization, as already mentioned. It may be said why not place sentries? It is because I know from

experience that common men cannot be depended on for such a purpose beyond a few nights, and there were so few officers at the fort, to have employed them on that duty we must have put a stop to the business of the place which would derange the whole business of the department, and I therefore considered it best to act as I did. I was much surprised a few days after the arrival of Chief Factor Ogden, by the arrival of Lieut. Peel and Capt. Parks, who handed me a letter from Capt. Gorden of Her Majesty's Ship America, from Nisqually, and stating he was sent by Admiral Seymour, who wrote me to the same purport to assure her Majesty's subjects in the country of firm protection, and which was most unexpected after what the Directors of the Hudson's Bay Company had written me. But more particularly from the silence of Her Majesty's Consul, Gen. Millar, at Oahoo, which led me to suppose at the time, though I was mistaken, that the British Government had cast us off and we must take care of ourselves the "best way we could." I do not mention this to find fault with others, but merely to state my feelings, and the responsibility I felt for the property under my charge. I was still more surprised on the return of Chief Factor Douglas from Nisqually, where he had been in company with Mr. Peel, to see Capt. Gorden, to receive a letter from Capt. Baillie of Her Majesty's Ship Modeste, informing me he was sent by Admiral Seymour to afford protection to her Majesty's subjects in the Columbia River if they required it. At first I thought we would not, as we had joined the organization, but on the suggestion of Chief Factor Douglas I thought it well to accept Capt. Baillie's important offer, and I am now happy I did so, as I am convinced it was owing to the Modeste being at Vancouver, and the gentlemen-like conduct of Capt. Baillie and his officers, and the good discipline and behavior of the crew, that the officers of the Hudson's Bay Company at Vancouver have had less trouble than they would have had, and which (though they have had a great deal more than I expected) certainly they have done nothing to incur, but the reverse. They have done everything they could to avoid it, but after all of which I am not surprised when I am certain there are many ill-disposed persons among these immigrants who think they are doing a meritorious act by giving trouble to British subjects.

The immigrants in 1845 amounted to 3,000 persons, men, women and children.

REVIEWS OF BOOKS.

McLoughlin and Old Oregon. By EVA EMERY DYE. (Chicago: A. C. McClurg and Company, 1900. Pp. VIII, 381.)

The incidents, personalities, color, and sequence of events in the growth of Oregon from 1832 to 1849 were never before portrayed as they are in Mrs. Dye's "McLoughlin and Old Oregon." Had the present day kinetograph and phonograph been at hand and in operation for recording the dramatic scenes and sayings of that period of wonderful changes in the Valley of the Columbia, we should have had more of the foibles, limitations, and obliquities of human nature, but Mrs. Dye's minute study, sympathetic assimilation, and unique strength in constructive imagination have given us an exceedingly interesting series of pictures almost as vivid as real life.

The book opens at Fort Vancouver, on the Columbia, the center of the Hudson's Bay Company's widely extended operations west of the Rocky Mountains, and the home of its chief factor, Dr. John McLoughlin. The time, 1832, marks the revival of the movement of American enterprise for the occupation of Oregon in the person of Nathaniel J. Wyeth. Nineteen years had passed since the Astor venture had suffered dismal discomfiture in that region. From 1832 on, however, the United States was to have representatives, in one capacity or another, of its interests in Oregon. Slender was its hold during the first half of this period, but its preponderance was overwhelming in the latter half. Wyeth failed with his commercial venture. Physical obstacles taxed his resources, and he had to meet the determined monopoly of the Hudson's Bay Company under its competent and benignant chief factor, Dr. John McLoughlin, backed by the millions of the company, and a disciplined host in possession of the goodwill and salutary respect of the Indians. But the American missionaries remained on the ground, established stations, accumulated stores, formed nuclei of settlements through their lay helpers, and correctly conceived

policies of inuring the Indians through example and precept to a status of settled agricultural life. Then come strong mountain men, who had had their fill of experience as solitary trappers in the wilds of the Rocky Mountains. Beginning with a band of one hundred and thirty-seven in 1842, and rising immediately to eight hundred and seventy-five in 1843 there rolled in the mighty tide of pioneer home-builders.

In such an entourage of events the author correctly conceives of the motive that is primary in this culminative course of events. A lower race is to be dispossessed by a higher, though Wyeth's plans contemplated advantage from the Indians' retaining their native employments, and the missionaries vainly hoped by a summary procedure to elevate them from lowest barbarism to civilization. Doctor McLoughlin holds the key to the situation, at least as to the immediate outcome. As representative of the fur trading monopoly, his interests are linked with the interests of the Indians in remaining in undisturbed possession of their imperial domains. It would have been so easy to have hustled back home the first forerunners of the great immigrations, and, if this had not deterred others from coming on in larger numbers, these in turn, utterly without resources after their long marches, could easily have been thrown into consternation and wrought havoc with by the chief factor of the Hudson's Bay Company.

The issues in this great drama of the Pacific Northwest turn then, first, upon the qualities of heart and character of the Indians that came under the influence of Lee, Whitman, and Spalding. Will they have the faith and fortitude to sacrifice a world in which they are the leaders for a possibly better world in which leadership is with the white man? Secondly, the outcome of this second movement of the Americans on to Oregon lies with Doctor McLoughlin. Will the depth of his humanity suffice to rescue, shelter, nourish and shield year after year those who would have perished but for his intervention and whose survival is bound to result in the appearance of invading hosts who will wrest the sceptre from him? Mrs. Dye has thrilling issues and two real heroes, Whitman and McLoughlin, in this epoch of Oregon history, and she makes the most of them.

The secret of her remarkable success in making the characters and conditions of that time live again lay in her getting the confidence of the principal surviving actors of that period and securing from them the fullest impress of the traditions of stirring times, with all the halo that half-a-

century would naturally invest them with. Through these sources she attained an understanding of the actors and spirit of the times so intimate that her pretension to supply the words used on all important occasions does not become a mockery, but through this dramatizing the author attains the unique element in her success. In this role her inimitable power of vivid representation, through successions of pictures, has its best application.

The stock of reminiscences that Mrs. Dye exploited with such rare skill and energy needed corroboration from contemporary documents. As the material for Oregon history is brought together, many lapses, more or less important, in matters of fact will no doubt be disclosed. As an instance: The magnitude of Wyeth's second expedition is stated in figures at least four times too large, both for the number of men and the amount of money.

The author has, however, kept herself remarkably well poised between the partisan bickerings that have characterized so much of the writing in Oregon history. The search of the author for indubitable evidence has been rewarded in the finding of some valuable material, notably the Whitman papers; and clues that she came upon have yielded treasures for others.

Towards the closing chapters the author swerves farthest from history towards romance. Instead of bringing the vigorous young Oregon community into the foreground, she leaves the stage empty. "Old Oregon," with its life had, of course, departed, but it was crowded out by the thronging of the new.

This book is by far the best that the general reader can select for an introduction to the life of early Oregon.

Missionary History of the Pacific Northwest. By H. K. HINES, D. D. (Portland: H. K. Hines, San Francisco: J. D. Hammond, 1899. Pp. 510.)

As the sub-title indicates, this is rather the "Story of Jason Lee" than a missionary history of the Pacific Northwest. There would have been no impropriety in giving it the title of "Jason Lee and the Methodist Missionary Effort in the Pacific Northwest." The title is positively misleading as it stands, for forty pages only are devoted to an account of the

work of the missionaries under the "American Board," while some four hundred and fifty are taken up with the story of the Methodist Missions. The Methodist denomination was first in this field with wisely chosen representatives. It sustained and reinforced its movement to christianize the Indians of Oregon most munificently, considering the conditions of the times. As a memorial of these efforts conceived with such grand and consecrated spirit, nothing would have been more fitting than a volume by Doctor Hines.

No one could have been so unfair as to demand of Doctor Hines a cold and critical account of these missionaries and their work. A panegyric on Jason Lee and his colaborers was becoming from him. He was the man prepared through life-long schooling and natural inclination to do this, and Jason Lee's work deserved it. But for the title and an invidious comparison that crops out all too frequently, Doctor Hines has done in this book just what God had prepared him to do.

It is a pity that a work of so high general character, the best product of such fine literary ability as Doctor Hines possesses, could not have been one of some famous series by a strong publishing house of the East that would have pushed it into the markets of the world.

The fact that the critical historian will take issue with the conclusions of this book almost from the beginning constitutes no disparagement of the real worth of the author's work. It was a labor of love for a character and for a denomination. This, however, may be said: The Methodist missionary project in the Pacific Northwest was, soon after its inception, at all but one or two points, not distinctively a missionary station at all. But it was a colony with a strong secular spirit and exercised a most salutary influence upon the affairs of the Oregon community. This fact the work of Doctor Hines unwittingly proves.

NOTE—A CORRECTION.

To the Editor Oregon Historical Quarterly:

In the article upon F. X. Matthieu in the March Quarterly there appears one inadvertence which should be corrected: Doctor White is mentioned as having first come to Oregon on the Lausanne. He came in 1837 *via* Honolulu, leaving Boston on the ship Hamilton, and reaching the Columbia in May, on the brig Diana.

H. S. LYMAN.

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The order for "Contents No. 1, Vol. I, March, 1900" has been retained as published in the original publication. Other apparent typographical errors have been repaired.

Footnotes placed at end of the respective chapters.

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